

The Political Roots of Legal Access: Evidence from Village Councils in India*

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Abstract

Politicians have long served as intermediaries for citizens navigating the state. Can elected members of village councils facilitate citizens' access to the formal justice system? Justice seekers face formidable social and administrative costs that cause most grievances to remain outside the state's purview. Council members lower these barriers through a distinct form of assistance: by acting as intermediaries. I test this theory in 28,000 village councils in Maharashtra, India, leveraging population-based discontinuities in council size, paired with an original dataset of 3.37 million court cases. I find that additional council members lead to a 51% increase in court filings and qualitative data documents these direct interactions. Surveys of citizens and council elections data show that this phenomenon is explained by greater capacity and descriptive representation in larger councils. These findings reveal how political institutions act as a catalyst for legal mobilization.

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1 Introduction

Citizens across the world face significant barriers to justice: globally, over two-thirds of the population has unmet civil and criminal justice needs (World Justice Project [2019](#)). As legal issues remain unresolved, individuals risk losing their livelihoods, property, and fundamental human rights. Access to justice is therefore critical for protecting these rights and maintaining social stability—and courts form the central institutions where grievances can be resolved.

These grievances range from everyday justice issues, such as land disputes, to severe instances of crime and corruption. However, the vast majority of grievances face a series of obstacles before they reach the courts, leaving vulnerable citizens outside the protection of the rule of law. Faced with these barriers, citizens seek guidance from the most proximate state authority—typically, an elected representative. Although elected officials have long acted as intermediaries for citizens navigating the state (Stokes et al. [2013](#)), this paper offers new evidence on how they also play a critical role in helping citizens access the formal justice system.

Empirically identifying whether elected officials engage in this type of work is challenging. While surveys can capture individual experiences with the justice system, the small subset of the population engaged in disputes makes it difficult to generate representative samples. Further, endogenous factors—like litigants’ social capital and geographical proximity—determines whether they approach courts. I overcome these limitations by combining a novel administrative dataset with a regression discontinuity design (RDD) focused on Maharashtra, India. First, I assemble an original dataset of over 3.3 million cases involving litigants from over 28,000 villages, that allows me to precisely measure legal access at the village level for 1.2 million cases. These cases are filed in the District Courts of Maharashtra, the courts of first instance. Second, my identification strategy exploits a unique rule where two additional elected officials are assigned to the councils at strict, population-based cutoffs, providing a source of exogenous variation in the size of the council. The Indian context is also substantively important, given that citizens face multiple stages of discretion and discrimination as they seek to access formal state institutions (Jassal [2024](#)).

I find that increasing the size of the council increases access to the justice system. Specifically, I find that the case filing rate increases from a baseline of 1.25 to 1.89—corresponding to a 51% increase

in case filings. Further, I use the rich metadata associated with each case to determine whether a case involves a civil or criminal issue. I find similar sized effects for both criminal and civil cases—while the number of criminal cases increases by 44%, the number of civil cases increases by 67%. Finally, I use information on case decisions to show that political influence is limited to the filing stage of a case but cannot influence its timely adjudication.

I carry out additional tests to ensure that these results are not sensitive to the choice of bandwidth, districts in the sample and functional form assumptions. I obtain consistent results in employing three alternate empirical strategies: (i) by leveraging a regression discontinuity aggregation (RDA) design (Borusyak and Kolerman-Shemer 2025) that uses the data on all 3.3 million cases with treatments defined at the sub-district level; (ii) extending the RDA results by accounting for possible missing cases by leveraging the serialized nature of the case numbers (Wu et al. 2026) to measure outcomes and (iii) by leveraging a natural experiment involving newly formed councils.

I supplement the quantitative analysis drawing upon two distinct sets of qualitative data that highlight the ways in which council members act as intermediaries. First, informational interviews with 19 council members confirm that council members employ different strategies to deal with civil and criminal issues in their village. Second, a coding of field notes from shadowing council presidents (Bussell 2020b) provide evidence on how the officials intervene to help citizens register cases with the police.

I proceed to explore the supply and demand side mechanisms underscoring the increase in legal access. The literature on state capacity as pointed out that the supply of political, bureaucratic and judicial resources can lead to large immediate and downstream benefits. Furthermore, the increase in capacity can be based on the both the number and type of representatives. Thus, the increase in access can be driven both by the supply of additional human resource capacity to assist with legal grievances, and the supply of members with greater descriptive representation. Consequently, a larger council can also increase the demands for justice, particularly from diverse groups.

To test these patterns, I assemble additional data on council elections, council members, election timing, the census and two surveys, first from the Rural Demographic and Economic Survey of India (REDS-2006) and the Indian Human Development Survey (IHDS-2011).

I leverage a natural experiment within the REDS-2006, where population growth triggered the assignment of additional council members in some villages, to show that respondents in villages with larger councils had better evaluations of council members' quality and problem-solving ability. This shows that increasing the size of the council increases its capacity to serve citizens.

Next, I use rich data on council elections (Amar 2025) and find that larger councils have greater descriptive representation of non-dominant groups—villages with additional seats elect more women and members of marginalized groups, in excess of those accounted by mandatory reservation policies or quotas. Importantly, this increased representation is consequential and leading to substantive representation for women, demonstrated by an increase in filing rate for female litigants.

I also evaluate three alternative explanations that could explain why increasing the size of the council increases legal access. First, larger councils could increase the electoral competitiveness, which in turn increases the responsiveness of council members (Gerring and Veenendaal 2020). However, I find no evidence that the treatment affects electoral competitiveness. Instead, the treatment increases voter turnout by 10%. The higher turnout may be changing the types of elected members, that further supports a mechanism driven by greater descriptive representation. Second, larger councils could change the provision of public goods, particularly those related to the police. Particularly, council members could influence the staffing of the village-level law enforcement officer: however, I show that the smaller and larger sized councils are not systematically different in terms of whether the village police position is filled or not. Finally, a larger council could signal better state capacity and increase trust in state institutions (Hansen 2013). Descriptive analysis using citizen surveys from the IHDS-2011 suggest that the size of the council is not associated with confidence in the police and courts.

This article contributes to a broad literature examining how a specific factor of institutional design—the size of the elected body—affects electoral and governance outcomes. Previous work has primarily focused on the effect of legislature size on fiscal policy and public goods provision (Chen and Malhotra 2007; Höhmann 2017; Lewis 2019; Mignozzetti, Cepaluni, and Freire 2024; Pettersson-Lidbom 2012; Weingast, Shepsle, and Johnsen 1981), I extend this literature by investigating its effects on non-mandated forms of assistance. Given that elected officials can facilitate citizens' ability to make legal claims, I show that facilitating access to justice can be a form of deliverable

political good (Gallagher, Kruks-Wisner, and Taylor 2024).

The findings in this paper underscore how local institutions can shape legal behaviors in weak states (Blattman, Hartman, and Blair 2014; Brulé 2020). Crucially, this paper challenges the assumption that local authorities undermine the rule of law: instead, I show how non-adjudicative political bodies can strengthen formal adjudicative institutions by lowering the barriers to entry (Sarat and J. B. Grossman 1975). Additionally, by examining the role of elected officials in facilitating access to justice and legal mobilization (Black 1973), I contribute to studies of village governments in India. Prior research has noted the role of rural politicians as local intermediaries, shaping the allocation of benefits (Besley, Pande, Rahman, et al. 2004; Besley, Pande, and V. Rao 2012; Chattopadhyay and Duflo 2004; Dunning and Nilekani 2013), access to the state and its resources (Bussell 2019; Kruks-Wisner 2018a), and their contribution to democratic processes (Besley, Pande, and V. Rao 2005; Parthasarathy, V. Rao, and Palaniswamy 2019). Furthermore, by assembling a massive dataset encompassing the full universe of cases filed in the lower courts of the Indian judiciary in Maharashtra, this study contributes to the growing body of scholarship that examines the dynamic interplay between law and society at the grassroots level in India (Galanter and Dhavan 1989; Goyal, Van Noort, and Ahrenshop 2022; Kokal 2019; J. K. Krishnan et al. 2014).

2 Theoretical Expectations

Access to justice is a broad concept: researchers and international organizations have linked access to justice to the protection of human rights, social stability and economic development (Deseau, Levai, and Schmiegelow 2025). A core component of this concept is the legal capacity of citizens to overcome physician and social barriers to access formal judicial institutions. Such legal mobilization (Black 1973) enables formal adjudicative institutions (courts) to become involved in the interpretation and management of conflict (Sarat and J. B. Grossman 1975). The structural design of state courts—grounded in codified laws and subject to both public and appellate oversight—renders them uniquely equipped to deliver both procedural and substantive justice.

Histories of disputes show a pyramid-shaped dispute processing and resolution, wherein behavioral filters reduce the overall volume of cases taken to court. Many justice problems do not end up in

court at all—they receive no legal attention, forming unmet legal needs (Sandefur 2019). Would-be litigants evaluate the payoffs of pursuing a claim, consulting a lawyer, filing a lawsuit, and taking the case to trial (Genn 1999). Given that each step is costly, only a fraction of all disputes end up as cases in the formal legal system. The situation is particularly difficult for rural litigants, who face higher costs to getting their legal needs met (A. Hoffman and Strezhnev 2023; J. K. Krishnan et al. 2014).

To address this problem, a growing body of literature highlights the promise of “justice workers”—intermediaries embedded in local communities who help citizens navigate the justice system and overcome barriers in accessing legal remedies (Sandefur and Burnett 2024). While the literature in comparative politics has long documented the role of communities and village-level authorities in dispute resolution—from panchayats in India to customary leaders in Sub-Saharan Africa and Indonesia (Baldwin and Ricart-Huguet 2023; Ellickson 1994; Galanter 1981; Just 2001; Van Der Waal 2004)—this body of research has not yet looked at whether elected politicians can play a role in closing the justice gap by helping citizens approach and access the formal legal system.

As a result, people turn to local informal legal institutions consisting of village elders, local leaders and officials who dispense traditional or customary forms of justice (Gauri 2009). This form of legal pluralism prevalent across the Global South, and surveys across countries have noted the outsized preference for these informal institutions.

In order to help citizens overcome persistent problems of accessing formal legal institutions, countries across the world have considered both demand and supply side reforms. For instance, Indonesia devolved dispute resolution to customary village-level institutions, giving binding authority to village heads (Clark and Stephens 2011), while the Government of Eritrea organized community courts to enable community participation in the justice process (Andemariam 2011). More recently, research has shown how local community mobilization through justice workers (Sandefur and Burnett 2024) can help citizens overcome informational and transactional constraints to pursue legal issues through courts. In what follows, I discuss how politicians can play a very similar role to that of justice workers—in helping citizens overcome constraints and access justice by playing the role of an intermediary.

Elected representatives intervene in local disputes and help citizens access the state since it allows

them to demonstrate efficacy, claim credit and signal their competency. By using their influence to intervene between the state, bureaucrats and citizens, representatives can display their concern and responsiveness to the problems faced by their constituents. Helping people with their justice problems has electoral payoffs: representatives gain opportunities for credit-claiming at the time of elections, allowing them to build strong, lasting relationships with their voters which drives the incumbency advantage (King 1991). Such gains can make the representatives willing to help a very broad base of individuals. At the same time, partisan concerns can dominate assistance provided by local representatives: politicians may direct group-oriented goods to their core supporters.

When a citizen approaches an elected representative for help with disputes, the politician's intervention can take two forms: formal institutional facilitation or informal mediation. Two hypotheses follow from this.

First, I hypothesize that representative acts as a procedural guide, helping the aggrieved party navigate the bureaucracy of law enforcement to register formal complaints. Representatives facilitate access to the formal legal system by directly influence disputes that are reported to the state by providing information and advice¹. Next, they can affect disputes that are recorded by the state, since representatives have greater power and influence than common citizens to overcome bureaucratic hurdles. Their presence makes bureaucrats responsive to citizen's complaints through the "long route" of accountability, wherein politicians hold the service providers accountable (Devarajan, Khemani, and Shah 2005). Hence, I expect more citizens to overcome bureaucratic hurdles to access the formal justice system on increasing the number of representatives in a fixed jurisdiction.

H_1 . Increasing the number of elected representatives increases access to the formal justice system

These processes operate in distinct ways for criminal and civil cases. Criminal matters demand systematic investigation, forensic resources, and coercive authority, which make it difficult for representatives to independently adjudicate and enforce criminal judgements (Sternlight 2007). Consequently, for criminalized grievances, politicians facilitate access to formal legal authorities, ensuring the dispute enters the official state record where it can be addressed by specialized judicial

¹They can also indirectly influence reporting through a symbolic effect: seeing marginalized groups in positions of power can increase the self-confidence of to approach authorities (Iyer and Mani 2012).

resources.

On the other hand, civil grievances—such as those involving family disputes, land boundaries or debt—are amenable to mediation because they rely on local knowledge and social consensus. In this case, the representative could a quasi-judicial role, counseling the parties and negotiating a resolution outside the state’s purview (Sarat and J. B. Grossman 1975). Court cases may still be filed if mediation is not effective, or if the issue is complex that it requires systematic investigation by the state. Politicians can serve as intermediaries for such complex cases by providing forms of logistican and informational support: like helping with documentation, affidavits and access to lawyers and legal services.

Increasing the number of elected representatives adds additional human resources to provide assistance to citizens. This increases the capacity of politicians to provide assistance to citizens since it. I test this implication through the following hypothesis:

H₂. Increasing the number of elected representatives increases capacity to help citizens with everyday problems.

Finally, politicians solve these problems for citizens as a form of representation (Pitkin 1967, p. 155). However, not all citizens are equally likely to request assistance from representatives (G. Grossman and Slough 2022), and shared identities play an important role in whether the help is provided. A robust body of literature has found that representatives who share personal characteristics with particular citizens (descriptive representation) leads to greater substantive representation for the group (Broockman 2013; Butler and Broockman 2011; Chattopadhyay and Duflo 2004)— on account of intrinsic, personal concern and political incentives. Since politicians can facilitate access to justice as a service for constituents, political representation of non-dominant groups should increase access to justice for such groups in the justice system.

H₃. Increasing the number of elected representatives improves descriptive representation, increasing access to the justice system for a broad range of citizens

Although the theory focuses on elected representatives serving as intermediaries, it applies more broadly to other non-elected intermediaries with strong incentives to provide services to citizens. Examples of such intermediaries include village elders, brokers, state officials and “new leaders”

(Krishna 2011). It applies also to contexts where individuals have a strong connection to elected representatives. This implies representatives closest to citizens based on geography or social backgrounds are most likely to help with citizens' legal grievances. In doing so, the theory focuses on individual-level hurdles for dispute resolutions, that are eventually handled by both judicial and political institutions. This is distinct from larger mobilization of larger social and political movements, wherein incentives for political intermediaries are not clear.

Finally, while the theory applies to informal dispute resolution, resolution of formalized disputes is not guaranteed. Political influence cannot influence timely adjudication of disputes through formal institutions if official authorities—the courts and police—are adequately shielded from political interference through the separation of power. Politicians have a weaker ability to influence case-level outcomes such as decision quality, fairness or the time it takes to reach a decision. Thus, while politicians can influence the whether citizens are able to approach legal and law enforcement institutions, they cannot influence the outcomes and resolutions beyond this step.

3 Context: Village Councils in Maharashtra, India

Through the 73rd amendment to the Constitution, the Government of India formalized a uniform system of decentralization that created elected bodies beyond the national and state legislatures to the third tier of government. The reform created a three-tier system of local governance comprising *zilla panchayats* (district-level bodies), *taluka panchayats* (sub-district level bodies) and *gram panchayats* (village-level bodies). This paper focuses on the village-level bodies in Maharashtra, India. Maharashtra is a large state in the western part of India with a population of 112 million, and is divided into 36 administrative districts. Each district is divided into 358 sub-districts (*Talukas*). The sub-districts are further divided into 28,000 councils or *Gram Panchayats*, each of which typically consists of a single village, or 2-3 small villages.

The council consists of a *pradhan* (council head) and the ward members, who are elected for a period of five years. Ward members are directly elected; in recent years, the council head has been elected through direct and indirect elections (Alyssa René Heinze 2025). These positions are not term limited, however, India's reservation system or 'quotas' applies to each of these position. This

involves reservation of 50% of seats for women, and a percent of seats are reserved for members belonging to the Scheduled Castes (SC), Scheduled Tribes (ST) and Other Backward Classes (OBC) in proportion of their population.

The 73rd amendment formally entrusted the councils with both administrative and developmental functions. These functions involved activities like managing and monitoring facilities for water provision, sanitation, education, and public health (Chaudhary and Iyer 2022).² Councils are also carry out essential tasks involved in implementing numerous public policies and programs, notably the world's largest employment program, guaranteeing 100 days of minimum-wage employment and the construction and maintenance of roads (Brulé 2020; Bussell 2019; Gulzar, Haas, and Pasquale 2020).

In addition to these mandated responsibilities, prior research has noted council members play an informal role in facilitating citizens' access to the state. As navigating the Indian bureaucracy is plagued by complex procedures and demands for "speed-money" (bribes), citizens frequently rely on political networks and intermediaries for assistance (Berenschot 2010; Chauchard 2017). Indeed, 62% of survey respondents reported contacting council members for help to make claims on the state (Kruks-Wisner 2018b). Although higher level officials can be approached, citizens routinely identify the village-level council members as the figures best equipped to help them access the services they need (Bussell 2019).

Assisting citizens who face disputes and offences is a part of this informal role. India has a long tradition of dispute resolution at the village level— Meschievitz and Galanter (1982) explain that the term *panchayat* literally means the 'coming together of five persons,' and the meeting of five or more members of a village or caste to judge disputes was a prevalent practice in the past.³ Today, this role

²Maharashtra has one of the highest rankings regarding actual devolution of power to the councils (Unnikrishnan 2016), and is one of the few states with effective councils and regular elections before the 73rd Amendment (Chaudhary and Iyer 2022).

³These bodies could be organized along caste lines, based on village boundaries or involve the members of trade guilds or artisan groups to formally or informally hear complaints. While the idea of village panchayats serving as "judiciaries of the village" is not new, the Government of India has tried to approach the challenge of access to justice through two routes. In 2006, the Ministry of Panchayati Raj of the Government of India announced the formation of a committee to prepare a 'Nyaya Panchayat Draft Bill', which would involve elected bodies to serve as adjudicators. Press reports suggest that the Law Ministry had expressed objections to this, since in the same period (in 2007), the Ministry of Justice and Law conceptualized the *gram nyayalays*—which decentralizes judicial responsibility to local (village) level judicial bodies in the form of "mobile courts" that are headed by judicial officers who are trained judges (as opposed to elected officials). The 'Gram Nyayalays Bill' was eventually passed in 2008 in both houses of the Parliament.

involves helping citizens access the justice system, through courts and the police. A nationwide survey in 2017 found that during the initial stages of a dispute, 49% of respondents shared that they would approach village elders, and 23% of respondents shared that they would approach members of the village council.⁴ Moreover, surveys find that between 6-9% of all requests for assistance made to council members and presidents concern police cases (Bussell 2019, p. 185). Officials in both rural and urban areas frequently mediate relations with the law enforcement system (Bussell 2019; Tellez, Wibbels, and Krishna 2020). This suggests that council members can influence the filing of formal complaints, by acting as initial advisors to would-be litigants.

Helping citizens access the justice system is a not a scarce resource (Schneider and Sircar 2024)—helping one citizen with their dispute does not deprive another person of the same service, and the diverse partisanship of members of a council can allow citizens to approach different members to obtain the same benefit. Such help is meaningful, since accessing justice in the Indian courts has been called a “lifelong nightmare” (Yasir 2024). Courts in India are incredibly overloaded—on a per capita basis, India has only 20 judges per million⁵, while the United States has over 100 and Europe has over 200 judges per million (M. Rao 2024). Similarly, the Indian police system is also one of the most under-resourced—India has the second lowest police-to-population ratio in the world (Lee 2021). Consequently, India’s legal system is notoriously slow—congested courts delay the resolution of even minor cases.

The judiciary in India is organized as a three-tier system: with the Supreme Court at the center, 24 state-level High Courts, and 700 district courts. I focus on the lowest tier of the district courts: the subordinate courts under the District Courts, which form the courts of first instance. These courts hears both civil and criminal cases, and form the first point of contact between citizens and the justice system. Pursuing civil litigation in India involves the payment of processing fees and submitting the a draft of the complaint to the court. Pursuing criminal litigation in India involves approaching the police, who file charges against the accused.

While few remain operational, these so-called village-level courts are simply reassigned courtrooms located within existing subordinate courts, thus their title is nominal (Bail 2015).

⁴*Access to Justice Survey*—conducted by Daksh India—employed random sampling and collected responses from over 50,000 individuals. The information gathered includes demographic data, perceptions regarding disputes and information on disputes resolved through courts and through non-judicial means.

⁵Judges are recruited based on their performance in competitive judicial examinations, the norms for which vary across states.

4 Data and Empirical Strategy

4.1 Data

Case-level data from Maharashtra District Courts: The main variable of interest is access to the justice system—whether people approach courts to enforce their legal rights. This is measured by using administrative data on the universe of reported civil and criminal complaints handled by District Courts, the courts of first instance in India. The primary source of this data is the eCourts project, that aims to transform the Indian judiciary by incorporating information and communication technologies.

The eCourts project was designed to strengthen India’s justice delivery, by facilitating digital filings and availability of up-to-date judicial records, that can be easily accessed by members of the public. It involved a large-scale digitization of cases over the last two decades, which were made accessible to the public through a web-based platform. Each case record captures key details in its metadata, which includes the date of filing, acts and sections under which the case was filed, police station responsible (in case of criminal cases), and details of the actors involved (which are the litigants, lawyers and judges). Additionally each case record captures the processing details during the lifetime of the case: indicating the hearings conducted, interim orders (if any), whether a decision has been reached, and occasionally, the text of the judgment.

The main advantage of using this dataset is that the case filings capture whether individuals *meaningfully* accessed the justice system. While the eCourts data directly measures civil access to justice, measuring the legal registration of criminal cases in the courts serves as a hard test for the theory: grievances first get formally documented as a ‘First Information Report (FIR)’ by the police, and after preliminary investigation, a charge sheet is created which is filed in the court (Jassal [2024](#)).

While case filings only considers the complaints that reach courts, a limitation of using this as an outcome is that we cannot capture if council members are facilitating greater access to other stages in helping citizens access the justice system. Nevertheless, by considering only the cases that escalate into formal proceedings serves as a hard test of the theory that seeks to understand access to the formal justice system.

This data concerns Maharashtra’s lower judiciary scraped from the state’s public-facing website.⁶ The case-level metadata in Maharashtra includes the location from where the complaint originated—for rural areas, this is a census village from the 2001 census. Earlier work using such data for all of India indicates that the data is reliable between 2010 and 2018 (Ash et al. 2025; M. Rao 2024). I expect the data to have been regularly updated, given that Maharashtra is a state with higher state capacity compared to other states in India. The cases are classified into whether they are civil cases or criminal cases using a simple case coding rule elaborated in Appendix Section 1.6. Using the case level data, I create a panel dataset of village-year observations, with outcomes that include counts of all case filings, civil filings and criminal filings between 2016 and 2022.

I restrict the main analysis to a 1.2 million of the 3.37 million cases (35% of cases) in which all parties associated with a case belong to the same village, and the case is filed at the level of Civil Judge Junior Division, Civil Judge Senior Division or Judicial Magistrate First/Second Class at the sub-district level.⁷ I show robustness to including cases filed from multiple villages using an alternate design in Table A16.

Village Councils: The number of members in each council depends on the population of the jurisdiction of the village council. Typically, a village council is constituted for a single revenue village; however, some councils span over two or three villages. I collect data on councils and villages from the Local Government Directory—a dataset that defines unique land region boundaries for rural local governments that map on to India’s census data. The government maintains this dataset as an “up-to-date list of respective administrative units”. I use this data to list over 28,000 village councils in Maharashtra, and merge it with other datasets like *MahaEgram* (described below), that allows me to focus on subsets of councils that are created before 2016. The number of

⁶District Courts, Maharashtra https://court.mah.nic.in/courtweb/index_eng.php#, Last Accessed in December 2023 after which the data (without the village-level identifiers) can be accessed from the national eCourts repository.

⁷I make these restrictions for two reasons: first, I expect my theory to apply to disputes where all parties are from the same village, given that council members would be less likely to expend time and effort on issues that they may not be able to claim credit for. Second, cases that arise from multiple villages cannot be assigned as outcomes given that (1) the treatment village cannot be determined for such cases and (2) using such outcomes would violate the SUTVA assumption. I focus on subordinate courts that have unique jurisdictions that cover particular villages. Cases that are filed in subordinate courts do not involve large sums of money or long sentences. For additional details on limiting the analysis to subordinate courts, see Appendix Section 1.7. The village of the party is determined by the address of the plaintiff and defendant filed in the system—these can be individuals or organizations. For criminal cases, if there are three accused, the addresses of all three will be entered in the system. Although the state is a “party” to the case, an address for the state is not entered in this case.

members and count of councils in each category is shown in Table A1. I further link this data to the Socioeconomic High-resolution Rural-Urban Geographic Platform for India (or SHRUG) using village census identifiers. This allows me to augment the data with information from the 2011 census with council demographics and characteristics like education and income levels, availability of transport, infrastructure, and other variables.

Council Elections Data: I collected data on elections conducted in each council from the State Election Commission’s website. This contains important information on candidates, winners, winning margins and turnout. The earliest election recorded on the website is from 2017, and data were scraped up to the 2022 elections. I further assemble data on council characteristics (date of establishment, area, facilities etc.) from *MahaEgram*, a data repository of village councils managed by the Rural Development and Panchayat Raj Department of the Government of Maharashtra. Additionally, I use the data on the profiles of local elected representatives from the Maharashtra State Election Commission for elections held in 2021 to test mechanisms.

Survey Data: I turn to survey data to capture citizens’ opinions. First, I use data from the National Council of Applied Economics Rural Economic and Demographic Survey (REDS)—the survey collects data from a nationally representative sample from over 8,659 households in 240 rural villages in 17 Indian states on questions of local governance.⁸ Second, I use data from the Indian Human Development Survey (IHDS-2011)—a nationally representative sample of over 42,152 households—to capture citizens’ evaluations of confidence and trust in legal and law enforcement institutions.

4.2 Empirical Strategy

In this section, I describe the empirical strategy to test H_1 : whether increasing the size of the council increases access to the formal justice system. A challenge to testing whether the additional council members increase access to the justice system is that councils with more members may be systematically different from those that have fewer members due to unobservables. For example, villages with a greater number of members may be more populated, closer to courts, have more educated residents, and differ in their social culture. These differences in council characteristics

⁸Data has been generously shared by Andrew Foster.

Table 1: Council Population based cutoffs for number of members.

Council Population Thresholds	Number Of Council Members
<1500	7
1501-3000	9
3001-4500	11
4501-6000	13
6001-7500	15
>7501	17

Source: Maharashtra Village Panchayat Act, 1959. Population thresholds to be based strictly on previous census conducted.

can, in turn, affect whether aggrieved parties approach the courts. Therefore, a simple comparison between smaller and larger-sized councils could bias the estimates.

To study this systematically, I turn to a case where there is a different number of council members assigned to “similar” areas. To do so, I leverage the population-based cut-off that determines the number of council members in over 28,000 councils in Maharashtra, India using a regression discontinuity (RD) design.

The number of members in the council is determined by population cutoffs, which motivates a regression discontinuity (RD) design. The RD design exploits the continuity in the running variable—that is, the population of the council and the discontinuity at the cutoff between being assigned a smaller or larger council size. As per the Maharashtra Village Panchayat Act of 1959, the number of council members is determined by population cut-offs which I tabulate in Table 1. Here, we see that at the first threshold, councils with populations greater than 1500 are assigned 9 elected members, while those with a population below the threshold have 7 elected members. Treatments are assigned as per the populations in the 2011 census—consequently, I analyse councils that were created before 2011. For councils with populations close to the threshold, the treatment (addition of two council members) can be assumed to be as-if randomly assigned.

Given the multiple cut-offs, it is possible to normalize and pool the results to form a single cutoff, or estimate effects at each cutoff using a multi-cutoff regression discontinuity design (Cattaneo, Keele, et al. 2016). The multiple cut-offs can help overcome a common shortcoming of regression-discontinuity methods in estimating causal effects—with just a single cutoff, would not know if the

treatment effect persists for those units whose scores on the running variable are farther away from the cut-off.

Before using these cutoffs, it is important to establish that the estimates are not contaminated by multiple treatments, which can be a common feature of regression discontinuity designs. Indeed, population thresholds can affect not only the size of councils, but also eligibility for public programs (Asher and Novosad 2020) and electoral systems (Arora 2022). I systematically searched for government programs that would contaminate any of the five cutoffs shown in Table 1. While no such programs appear to use the 1500, 4500, 6000 and 7500 cutoffs, a cutoff of 3000 is being used to determine eligibility for several schemes and I therefore remove it from further analyses. Table A4 shows that the 4500, 6000 and 7500 cutoffs not only change the size of the council, but also determines the number and size of wards within the council territory. I choose to fix the treatment as the addition of two council members at the first cutoff only, that includes councils exposed to the first cutoff with populations between 750 and 2250. I leverage a sharp regression discontinuity design using council population as the running variable, since the population determines the number of seats in each council. Data from council elections (Table ??) and an audit of villages (Table A6) shows that the rule is followed in practice.

I define causal effects in the potential outcomes setup as follows: $Y_i(0)$ and $Y_i(1)$ are the outcomes for council i , with the population of the council denoted by X_i . The causal effect of an increase in council size by two members can be given as $Y_i(1) - Y_i(0)$. However, since both cannot be observed at the same time for individual councils, we can compute the average treatment effect exactly at the cutoff c as follows:

$$\tau = \mathbb{E}[Y_i(1) - Y_i(0)|X_i = c] = \mathbb{E}[Y_i(1)|X_i = c] - \mathbb{E}[Y_i(0)|X_i = c] \quad (1)$$

The key identifying assumption is that $\mathbb{E}[Y_i(1)|X_i = c]$ and $\mathbb{E}[Y_i(0)|X_i = c]$ are continuous in X_i , which means that all unobserved variables and confounders are also continuous in X_i . I collect cases for each village v that is nested within a council i , over seven years, with each year denoted by t .⁹

⁹Although I have data over time that could have allowed me to leverage a difference-in-discontinuities design, note

As the jurisdiction of each council can comprise of one or more villages, I modify the RD specification to accommodate the different levels and the temporal aspect of the data, and clustering the errors at the council level as follows:

$$Y_{vit} = \beta_0 + \tau \mathbf{1}(X_i \geq 0) + \beta_1 f_1(X_i) + \beta_2 f_2(X_i) \mathbf{1}(X_i \geq 0) + \epsilon_{vit} \quad (2)$$

Where Y_{vit} is the outcome for village v in council i in year t , ϵ_{vit} is the error term, $f(X_i)$ are two separate functions of the running variable—typically either linear, quadratic, cubic or quartic. τ gives us the average treatment effect at the cutoff.

4.3 Key Assumptions of Identification

The key identification assumption in a regression continuity design is that the outcomes for the treated and untreated units are continuous in X_i around the threshold $X_i = c$ where X_i is the running variable and c denotes the cutoff. While the identification assumption is fundamentally untestable, we can increase the credibility of the regression discontinuity design using the following approaches.

Continuity in Running Variable: First, I conduct a density discontinuity test. This helps us assess whether individuals in councils can manipulate the running variable X_i —that is, the population in our case. Manipulation in this case would imply sorting: the concern is that a local council can select into either side of the discontinuity through corruption, perhaps because smaller councils can help local elites secure their power and positions by falsifying the population numbers. In such a scenario, the population distribution across villages will not be smooth.

We can assess whether there are distributional imbalances in the running variable on either side of the cutoff. I run the Cattaneo, Jansson, and Ma (2020), using local polynomials ranging from the first to fourth order. The null hypothesis implies that there is no manipulation. For each order, the p-values are as follows: local linear (0.66), quadratic (0.49), cubic (0.42) and quartic (0.21). This

that the treatment is assigned in the year of the census (2011) and the case-level data I collect is all from the period after the census is conducted, that is, between 2015 and 2023. Thus, a difference-in-discontinuities is not applicable in this scenario

Table 2: Larger and smaller councils are similar

Covariates	Units	Control	Treatment	<i>p-val</i>
All weather road	1/0	0.67	0.67	0.82
Public transport available	1/0	0.84	0.85	0.64
Internal road	1/0	0.37	0.36	0.63
Distance from HQ	km.	55.62	54.88	0.42
Graduates+	%	0.03	0.03	0.24
Distance to Court	km.	26.66	25.79	0.42
Distance to Police Station	km.	9.65	10.18	0.12
High income (INR 5000+)	%	22.90	23.01	0.82
High income (INR 10000+)	%	6.87	7.15	0.23

Note: * $p < 0.1$; ** $p < 0.05$; *** $p < 0.01$. I take the means of observations within a bandwidth of 300 below and above the cutoff. The units column indicates the units of a measure: they can be either be for binary (roads, public transport availability) or continuous (distance, land, number of graduates, shares) variables. All variables are measured based on data from the 2011 Census or the 2011 Socio-Economic Caste Census, as compiled in the ‘SHRUG’ dataset. Distance to courts and police stations indicates the Haversine distance from the centroid of the council to the closest court or police station. ‘p-val’ indicates the p-value from two sided t-test.

implies that we have no evidence of manipulation, confirmed visually in Figure A4.

Continuity in Observable Characteristics: Second, influences on other council characteristics should be continuous in X at $X = c$. I test this by analyzing the means for larger and smaller council sizes in Table 2 below for a range of outcomes within a constant bandwidth.

For the analysis in Table 2, I first assemble a list of characteristics that could be possible confounds—any imbalances on these may imply that the estimated treatment effects are due to other confounding factors, and not simply due to the increase in council size. We see that the p-values for all are greater than 0.05 thus we fail to reject the hypothesis that they are statistically distinguishable. Further, I regress the treatment on the council—I fail to reject the null hypothesis that the coefficients of the predictors are jointly 0, given a p-value of 0.49 associated with an F-statistic of 0.92. Figure A5 shows this graphically: connectivity (roads, availability of transport), geographic characteristics (distance to district headquarters, courts and police station) and socio-economic factors (education, income) are similar in councils in the treatment and control groups.

5 Results

I present three sets of empirical results. First, I use analysis leveraging a sharp regression discontinuity design to show that increasing the size of the council increases access to the justice system, for both criminal and civil cases (H_1). Importantly, I show that the elected officials' influence is limited to the filing stage: I leverage the same design and show that additional council members do not influence court processes. Finally I present qualitative evidence that describes how council members serve as intermediaries.

5.1 Council members increase access to the justice system

I start by describing the patterns of the treatment and outcomes. Figure A1 shows the case filings are generally increasing over time. Figure A2 shows that about 68% of the councils are affected by the first cutoff—the focus of this analysis. Figure A3 shows the variation across the state where the outcomes could be measured: we see that the outcomes are well distributed across the state.

The main explanatory variable (treatment) takes the value 1 if the council population is at or greater than 1501, and 0 if it is not. Therefore, moving from control to treatment implies that the council will have two additional seats from which ward members are elected.¹⁰ The results indicate the effects of a larger council on the filing rates—total number of cases normalized by the village population—from villages for all case types, criminal cases and civil cases between 2016 and 2022. The outcomes for each village are observed for each of the seven years. I report local linear regression discontinuity estimates using the optimal bandwidth and triangular kernels based on Calonico, Cattaneo, and Titiunik (2014), with robust standard errors clustered at the council level in parentheses.

Table 3 shows the main results: each column indicates the total number of observations, the number of observations within the bandwidth, the estimated local average treatment effect τ and the robust bias-corrected p values. The first column shows that increasing the size of the elected body increases access to the justice system. The filing rate for villages in the control group is low: at 1.24 per

¹⁰Each council, or *gram panchayat* is divided into geographical units called wards, and each ward elects two or three ward members. Table A4 shows that at the 1500 threshold, there are three wards in each council. Councils in the treatment group elect 3 members from each ward to elect a total of 9 members, while councils in the control group elect 3 members from one ward and 2 members from two wards, to elect a total of 7 members.

year. Increasing the size of the council by two members leads to a 0.67 increase in filing rate, corresponding to a 51% increase. To assess the magnitude of the effect, I calculate the standardized effect size, wherein I divide the LATE with the standard deviation of the control group within the bandwidth. I find that the treatment results in an effect size of 0.2 standard deviation, suggesting a small effect size.

Table 3: Council Members Increase Access to the Justice System

	All Cases	Criminal Cases	Civil Cases
LATE	0.64*** (0.24)	0.36** (0.17)	0.28*** (0.11)
Observations	100790	100790	100790
Observations (bw)	25519	22136	33332
Bandwidth	174	152	224
Mean (control)	1.25	0.81	0.42
Effect (%)	51	44	67

Note: * $p < 0.1$; ** $p < 0.05$; *** $p < 0.01$. Local linear estimates of average treatment effects (LATE) at cutoff estimated with triangular kernel weights and optimal MSE bandwidth, with 95% robust SEs clustered at the council level. Observations (bw) denotes the number of observations within the optimal MSE bandwidth and Mean (control) is the control mean within the optimal MSE bandwidth. Each observation is a village-year.

The results remain consistent when I classify cases into criminal and civil cases. An increase in council size leads to a 44% increase in criminal case filings, and 67% for civil case filings. These results provide support H_1 —that increasing council size can increase access to the formal legal system.

Next, I test if additional council members affect court processes. While the previous section shows that the addition of two council members to the local body can increase case filings, I argue that they cannot meaningfully influence processes once the cases reach the courts. This is primarily due to two reasons: first, that the legal branch is sufficiently separated and insulated from the legislative branch, and second, that courts are extremely overburdened and slow due to a number of institutional reasons (Bhavnani, Bhogale, and Jadhav 2025) which hard to fix for individual cases, and to be influenced by council members.

I test this using the case level data, which allows me to calculate the number of decisions issued for each village, and if decided, the average time (in days) that the case was decided in, using the

filing and decision dates for each case. We confirm these expectations in Table A13: the additional council members are not able to meaningfully influence court processes. Even though litigants from villages file a greater number of cases, courts do not issue a larger number of decisions, or resolve the cases quickly. This has two implications—first, the influence of council members is limited to making a bridge to the legal institutions possible, and second, that the working quality of the courts does not diminish on account of being inundated by additional case filings.

5.2 Robustness

In the Figures A6, A7 and A8, I show that these results are robust to varying the bandwidth, districts included in the sample and functional forms assumed. Further, Figure A9 shows no effects at placebo cutoffs. A concern with the analysis so far is that these results might change if we include cases filed from litigants in multiple villages. This would bias my result by overstating the benefits, since council members may not be equipped to serve as intermediaries for complex disputes that span litigants across different villages. In Tables A16 and A15, I show results from leveraging an alternate design using Regression Discontinuity Aggregation (RDA) (Borusyak and Kolesman-Shemer 2025). Here, I aggregate all cases at the sub-district level, and estimate the effect of fractions of treated councils on the case filings, instrumented by the treated councils close to the 1500 cutoff. The results remain consistent using this design: increasing the size of the council increases total cases filed by 45%.

A second concern with these data is the possibility of missing cases: and particularly, if the missingness is associated with the treatment. I compute the possibility of missing cases using the the serialized nature of the case numbers (Wu et al. 2026), which shows that about 26% of the overall data could be missing. This can be an overstatement, as some courts may not be strictly following the serialization rule. Nevertheless, I extend the RDA analysis to focus on sub-districts with excellent data: where any possible missingness accounts for fewer than 10% of the observed cases. Table A10 shows consistent results: pointing to a stronger effect in these sub-districts.

Finally, I turn to a more demanding test of the theory by exploiting a natural experiment driven by the creation of 952 new councils between 2016 and 2022. These councils were formed by partitioning larger jurisdictions into smaller units. Based on the same population thresholds described in Table

1, these new council jurisdictions were assigned either a 7-member or 9-member council. While the split reduces the representation ratio across all new entities, the magnitude of this reduction is much larger for the 9-member councils. In this highly disruptive environment which entails fresh elections in the new jurisdictions, Table A17 shows that larger councils increase the filing rate for criminal cases.

5.3 Council Members as Intermediaries

I draw on qualitative data and shadowing to highlight the ways in which these council members act as intermediaries. I use two sources of qualitative data. First, I use data from anonymized field notes collected by research assistants from Bussell (2020b). Fourteen council presidents were ‘shadowed’ (Bussell 2020a) for approximately two days, as they carried out their regular daily activities. Bussell (2020a) explains: ‘this method allows for detailed descriptions of president’s behaviors and interactions’, and shares detailed notes on her website. Second, I analyze qualitative data from phone interviews with 19 council members currently serving in councils across Maharashtra.

Out of the fourteen presidents shadowed, 6 of them engaged in some activity pertaining to the police. These instances provide evidence of direct interactions with the police, where the council president assists with case filing. I reproduce the evidence from the field notes during the shadowing of council president D: “Council president D was approached for help in filing an FIR for a stolen television set. The president calls the head constable, requesting to file an FIR”. During the shadowing of council president G, the notes share this instance: “Council president G was approached by a woman with whom the school headmaster had misbehaved, and the president helped the woman by helping her write an application to the senior police officer”. Finally, during the shadowing of council president J, we see a similar incident: “Council president J called the police officer in charge to investigate a case of a woman from the village who had been harassed by a man”.

These instances highlight the fact that the council president has been approached for help with registering a complaint at the police station. I further conduct informational interviews with 19 council members, inquiring their perceptions on the role they play in dispute resolution. The short informational interviews focused on the role played by council members when their constituents experience disputes (see Appendix Section 5.2 for the questionnaire). I first inquired what role they

play in dispute resolution, provided them with hypothetical scenarios of a civil dispute within a family involving land and inheritance, and a criminal issue wherein a murder had been committed. A limitation of this question was that in many villages, crimes like murders are rare, so few members had experience with such a grave crime. Nonetheless, the question elicited responses regarding how they would deal with grave crimes that would take place in the village. I reproduce a number of quotes and excerpts that provide suggestive evidence of the role played by council members in disputes.

I asked council members about the differences in handling civil and criminal disputes. Most respondents agreed that most small disputes get resolved within the village itself and there is no requirement to involve external authorities. When prompted to elaborate on these differences, one president said, “Typically, the *police patil*¹¹ and *sarpanch*¹² will try to solve the dispute at the village level itself. Only in the case of a big crime, the police will get involved”. Another council member remarked: “If it is a major crime, it will go to the police station and the courts. Criminal cases cannot be resolved within the village”. This confirms the dual role played by politicians in dispute resolution: one is in local dispute resolution, and the other is in helping litigants access the formal legal institutions.

Second, I asked council members about the interactions they have had with the police, and to describe the circumstances. One council member proudly shared that he knows the *beat hawaldhar*.¹³ Another member shared: “If there is any issue in the village, or a case is registered from the village, the police will call the *gram panchayat* member, and we try to see if we can resolve the issue at the village level itself, since it will be a cheaper resolution”. A village president shared: “In case of any investigation in the village, the police get in touch with police patil, sarpanch and *gram panchayat* member”. These interviews highlight the forms of interactions and instances wherein the officers of the law enforcement system are closely knit with elected council members, and thus council members are equipped with the know-how on how they can help their constituents file complaints

¹¹The Maharashtra Gazette explains that the “police patil” is a village level official, subordinate to the Police Sub-Inspector of the area concerned. They are responsible for the maintenance of peace and order in the village, and is expected to assist the Police in investigating the crimes. Details reproduced from the Maharashtra Gazette at <http://bit.ly/409iuDb> accessed on July 10, 2025.

¹²The head of the elected council.

¹³The *beat hawaldhar* is the constables in-charge of the village, usually placed at the police headquarters.

and approach courts.

6 Evaluating supply and demand-side mechanisms

In this section I evaluate supply and demand-side mechanisms. I show that that additional members in a village council increases its capacity to do work and help constituents with their problems (H_2). Further, I test whether larger councils increases the supply of members from diverse groups by increasing descriptive representation (H_3). I show that larger councils increases the representation of non-dominant groups beyond those mandated by affirmative action or “quotas”. Finally, I test whether this changes demands from citizens and find that the treatment increases the filing rate for women.

6.1 Increase in Capacity

Increasing the size of the council mechanically generates two changes: it decreases political jurisdictions and consequently, increases the representative to citizen ratio. This can make citizens feel closer to decision makers, making them more approachable and efficacious: studies on changes in jurisdictional size have demonstrated that larger jurisdictions have a detrimental effect on citizens’ internal political efficacy and satisfaction (Hansen [2015](#); Lassen and Serritzlew [2011](#)).

In the context of Maharashtra, at the first cutoff, we see that the number of representatives per citizen goes from one for 214 citizens to one for 166 citizens: a decrease in the number of citizens per politicians but an increase in the ratio of politicians to citizens by 28%. I argue that this increase in the representatives to citizen ratio is the main mechanism that is driving the results. Increasing the number of politicians per constituent increases the human resources available to provide assistance. As has been shown before across political institutions, increasing the number of public officials in India—across bureaucracies (Muralidharan and Sundararaman [2013](#)) and judiciaries (M. Rao [2024](#))—improves the performance of institutions in obtaining their goals. We might expect similar benefits as we increase the size (capacity) of local governments, given our contextual knowledge that tells us that local officials are overloaded with work (Dasgupta and Kapur [2020](#)), and that local elections are frequent and competitive (Auerbach and Ziegfeld [2020](#))—making shirking and

free-riding of politicians less likely.

A qualitative coding of the field notes collected by Bussell (2020a) reveals that council leaders spend between four and eight hours each day on various activities—including but not limited to—resolving issues, speaking with villagers and visiting government offices. Given that this work is both demanding in terms of time and resources, and is unpaid, the additional resources can make a sizable difference on the conduct of such work.

An alternative argument is that a larger body leads to more shirking, increasing the free-rider problem. However, this seems unlikely given the context of Indian elections, wherein members have clear responsibilities (Bhavnani 2021). Moreover, local politicians in India face competitive elections and seek re-elections to the same or higher office, and especially given the fact that elections to councils having a larger size bring about 13% additional voters to turnout during elections (Appendix Table A9). Neglecting duties might hurt a member's reputation, winning chances and trust at the local level. If representatives are aware of this payoff, they would be most responsive as elections approach. I test for electoral cycles and show evidence of this in Appendix Table A6.

Further, I leverage survey data to test the observable implications of increasing the human resources available for constituency service and show that the additional work performed by council members benefits them through reputational gains and increases capacity to solve local issues. To empirically test this, I use data from the National Council of Applied Economics Rural Economic and Demographic Survey (REDS). This section analyzes the 2006-08 round of the nationally representative survey, which covers more than 8,000 rural households across India. I focus my analysis on more than 44,000 respondents from 233 villages in India, taking advantage of the fact that larger councils are allotted to villages between two elections, typically when they cross a population threshold.

The survey asks each respondent to rate the current and previous council members. Each respondent is asked to rate council members' honesty and qualifications, and rate how well council members solve social and local problems. Responses are based on an ordinal scale (High = 1, Medium = 2, Low = 3, Not aware = 4). I exclude respondents who answered they were not aware to answer about the quality and ability of council members, and recode the outcomes based on an increasing score of evaluation for ease of interpretation. Section E.1 describes the exact questions used in the survey.

I analyse the survey data with a difference-in-differences design, since ratings are collected for both the current and previous council. Of the 233 villages, 64 villages are assigned a larger council during the 2001 census, and the survey compares these evaluations for the current and previous period.

Thus, I can run a specification of the following:

$$Y_{it} = \beta_0 + \beta_1 \cdot \text{Post}_t + \beta_2 \cdot \text{Treat}_v + \beta_3 \cdot (\text{Post}_{it} \times \text{Treat}_v) + X_i + \epsilon_v \quad (3)$$

Here, Y_{it} represents the outcome for respondent i from village v at time t , Treat_v is an indicator that takes the value 1 if the respondent is in a treated village, Post_{it} takes the value 1 if the individual is evaluating the ratings for the current council, and 0 if the evaluation is for the previous council. X_i includes respondent level controls: sex, religion, years of schooling and caste. Standard errors are clustered at the village level.

I find in Table 4 that on being assigned to a larger council causes respondents to increase their rating on a host of measures of quality and ability of council members—we see that the coefficients are positive for all outcomes, and statistically significant for two of them: respondents hold better perceptions of council member’s qualifications, wherein the treatment causes 3.6% increase in the outcome relative to baseline. Further, we see that respondents increase their evaluations of council member’s ability: the treatment causes a 3% increase in their perceptions of a council member’s ability to solve local problems relative to the baseline. An important caveat of this design is that responses have been collected at a single period, and respondent’s ratings of previous council members could be biased when they receive the treatment: the recall bias may differ between the treatment and control groups. As such, these results provide suggestive evidence of an increase in council member’s ability to respond and handle to local disputes.¹⁴

¹⁴While it is possible to overcome these issues by looking at the *Socio Economic Profile of Rural Households in India (SEPRI) - 2014* survey, this was a shorter follow-up to the REDS and the same questions were not asked.

Table 4: Effect of Larger Council on Quality and Ability of Council Members

	Beneficiary Fairness	Qualifications	Solve social problems	Solve local problems
ATT	0.03 (0.03)	0.06* (0.03)	0.02 (0.03)	0.06** (0.03)
Observations	88,980	83,416	86,102	88,673
Adjusted R ²	0.01	0.01	0.01	0.01

Note: * $p < 0.1$; ** $p < 0.05$; *** $p < 0.01$. Standard errors in paranthesis clustered at the village level. The treatment is council population crosses population threshold which assigns two additional seats. Each observation takes an ordinal outcome taking values between 1 and 3, with 3 being the highest rating. ‘Honesty’ is a rating of the council member’s honesty and fairness. ‘Qualifications’ is a rating of the council member’s technical qualifications. ‘Solve social problems’ is a rating of the council member’s ability to solve social problems, such as disputes over land, marriage etc. ‘Solve local problems’ is a rating of the council member’s ability to solve local problems such as roads, education, water etc.

6.2 Increase in Descriptive Representation

Another reason that could explain the increase in filing rate from villages with larger councils is that a larger council increases representation of non-dominant groups by affecting the electoral context: a larger number of seats would attract a larger number of candidates and in turn affect the turnout.

Representation of women, SC, ST and OBC council members is largely shaped by quotas. Political reservations in India stipulate 50% of seats to be reserved for women: consequently 50% of additional seats are also reserved for women. Quotas for SC, ST and OBC members are based on their respective shares in the council population. I test whether a larger council size increases descriptive representation beyond those mandated by the state. For each council, I calculate the representation of female, SC, ST and OBC council members who are not elected from a seat reserved for the respective groups. That is, for each council, I subtract the number of quota seats held by members of group g from the number of total seats held by members of group g .

I use the same sharp RD design to test whether the size of the council affects descriptive representation beyond that which is mandated by quotas. I use the data on the profiles of the council members—particularly data from the Maharashtra State Election Commission for elections held in 2021 that includes the gender and caste of all candidates.¹⁵ Of the 15003 election contests held in 2021, I

¹⁵This data was collected by Priyadarshi Amar during his dissertation fieldwork (Amar 2025) and I sincerely thank him for sharing the same.

correctly match the names of the council elections for 90% of councils to the 2011 Census that indicates population. 8055 of these are within the population range for the cutoff at 1500 which I analyse below.

In Table 5, we see that there are meaningful spillovers or ‘overflow’ of mandated quotas: increasing the size of the council increases the descriptive representation of female and SC members in the council, beyond those mandated by quotas.

What explains the increase in representation? While the theoretical underpinnings of a more representative council suggested that elections to larger councils might reduce the barriers to entry, Table A10 shows that this is not the case: for each seat in a larger council, I do not find any change in the competitiveness of the election or the number of candidates contesting for elections at each seat. However, elections to a larger council increase the turnout by over 12%, indicating greater political mobilization in jurisdictions with a larger council size, which could shape the types of candidates who win. At the same time, quotas could be affecting descriptive representation beyond their target dimensions, following upon earlier work that finds that quotas for women changes the representation of non-dominant groups (members belonging to the SC, ST and OBC) (Karekurve-Ramachandra and Lee 2020), and quotas for non-dominant groups increases the descriptive representation of female council members (Amar 2025).

Table 5: Larger Councils increase representation beyond mandated quotas

	Additional Female Members	Additional SC Members	Additional ST Members	Additional BCC Members
LATE	0.17*** (0.06)	0.05* (0.03)	0.04 (0.03)	0.03 (0.09)
Observations	8055	8055	8055	8055
Observations (bw)	2984	2590	2247	2704
Bandwidth	258	223	194	234
Mean (control)	0.32	0.07	0.06	0.4
Effect (%)	53	74	61	8

Note: *p<0.1; **p<0.05; ***p<0.01. Local linear estimates of average treatment effects (LATE) at cutoff estimated with triangular kernel weights and optimal MSE bandwidth, with 95% robust SEs clustered at the council level. Observations (bw) denotes the number of observations within the optimal MSE bandwidth and Mean (control) is the control mean within the optimal MSE bandwidth. Each observation is a council that had elections in 2021.

Is such an increase in representation consequential? I test this using the profiles of litigants involved in these cases. I classify the names mentioned in the case records by using machine-learning based approaches. These approaches use a combination of methods—a neural network trained on name patterns relying on millions of names in the Indian Electoral Rolls to predict gender (Laohaprapanon, Sood, and Chintalapati 2026), a Bayes classifier based on 140 million names in the Socio-Economic Caste Census of India to predict caste (Laohaprapanon and Sood 2026) and a neural network based classifier trained on names in the Bihar Land Records data to predict religion (Chintalapati, Dar, and Sood 2025). Note that these names are of the litigants for civil cases, and of the defendants for criminal cases.

I use this information to test whether the increase in council size can change the characteristics of litigants accessing the justice system for civil cases. From Table 6, we see an increase in cases that have atleast one female litigant from councils with additional members. While there are also substantively large increase in the number of cases filed by litigants belonging to SC, STs and minorities, these results are not statistically significant at conventional levels.

Table 6: Increase in council size changes characteristics of litigants

	>=1 Female Litigant	>=1 Litigant from Non-Dominant Group	>=1 Litigant from Minority
LATE	0.14*** (0.05)	0.12 (0.08)	0.12 (0.08)
Observations	100790	100790	100790
Observations (bw)	32205	37280	37280
Bandwidth	218	254	254
Mean (control)	0.19	0.16	0.16
Effect (%)	71	78	78

Note: * $p < 0.1$; ** $p < 0.05$; *** $p < 0.01$. Local linear estimates of average treatment effects (LATE) at cutoff estimated with triangular kernel weights and optimal MSE bandwidth, with 95% robust SEs clustered at the council level. Observations (bw) denotes the number of observations within the optimal MSE bandwidth and Mean (control) is the control mean within the optimal MSE bandwidth. Each observation is a village-year.

6.3 Alternate Explanations

The results shown so far paint an optimistic picture about the role played by council members who lower barriers to access the justice system. These findings could also underscore a more pessimistic story: one where council members persecute members from non-dominant groups by filing criminal cases against them. I rule this out by using the same machine-learning based approach to examine the demographic profile of defendants in criminal cases. If the increase in filings were driven by state-led persecutions, we would find a disproportionate increase in criminal prosecutions against marginalized groups. Table 7 confirms that there is no such increase in the prosecution of members belonging to non-dominant castes and religious minorities. This finding supports the theory and qualitative evidence presented so far that the increase in filings is on account of meaningful access for citizens.

Another mechanism that could drive increase in legal access is if council members can strengthen functions pertaining to the legal and law enforcement systems. They could petition action to implement village-level courts or increase staffing levels at the police station to increase monitoring and reporting. The former is not likely, given that the implementation of the panchayat-level courts, a part of the (*Gram Nyayalays*) program, remains a challenge: of the 5000 panchayat-level institutions proposed in 2008, only about 338 of these have been established as of 2026, with limited success (Bail 2015). To directly test whether additional council members decrease vacancies in the village police officer position, I use survey data from Alyssa R. Heinze, Brulé, and Chauchard (2025)—Table A11 shows that larger councils are not able to decrease vacancies of this position. Finally, a larger council could signal better state capacity and increase trust in state institutions (Hansen 2013). Descriptive analysis using citizen surveys from the IHDS-2011 suggest that the size of the council is not associated with confidence in the police and courts.

7 Conclusion

The United Nations defines access to justice as a fundamental principle of the rule of law—without which people cannot exercise their rights, challenge discrimination or hold decision-makers accountable. Access to justice is the principle that allows individuals to seek effective and substantive

Table 7: Increase in council size does not lead to identity-based persecutions

	>=1 Female Accused	>=1 Accused from Non-Dominant Group	>=1 Accused from Minority
LATE	0.03 (0.03)	-0.03 (0.05)	0.06 (0.06)
Observations	100790	100790	100790
Observations (bw)	32681	26034	30740
Bandwidth	220	178	208
Mean (control)	0.11	0.11	0.12
Effect (%)	31	-27	48

Note: * $p < 0.1$; ** $p < 0.05$; *** $p < 0.01$. Local linear estimates of average treatment effects (LATE) at cutoff estimated with triangular kernel weights and optimal MSE bandwidth, with 95% robust SEs clustered at the council level.

Observations (bw) denotes the number of observations within the optimal MSE bandwidth and Mean (control) is the control mean within the optimal MSE bandwidth. Each observation is a village-year.

resolutions of their legal issues through a legal system that is fair and equitable. A strong legal system improves entrepreneurship (Chemin 2009), security of property rights (Abera and Chemin 2021), and firm productivity (M. Rao 2024).

These results show that representatives serve as a critical bridge to formalize both civil and criminal claims that require the state's investigative authority.

Studying access to justice poses challenges for researchers, since there are many determinants of why individuals approach legal authorities, and isolating the role of a particular determinant is difficult without a robust research design. Second, since instances of disputes are not experienced by everyone in the population, researchers find it difficult to measure access to justice through surveys. A major innovation of this study is to answer this question using a credible regression discontinuity design, interviews and micro-level data on court cases.

In this paper, I demonstrate that members of councils can improve access to justice for rural citizens—particularly for criminal cases—almost doubling the number of criminal cases that end up being litigated in the formal legal system. This enables individuals to enforce their rights through the formal legal system, which can prevent power abuse and promote equality and human development.

Councils with greater size improve access to justice through greater descriptive representation, as these councils elect a greater number of members from non-dominant groups. This increase

in representation can make them more effective as it allows the elected body to provide help and provide assistance to diverse members of the village community. Suggestive evidence also suggests that such bodies are also perceived to be of greater quality and ability.

In doing so, this paper makes important contributions to the literature on access to justice and legal mobilization (Black 1973; Galanter 2010; Genn 1999; J. Krishnan et al. 2014; Sandefur 2008). While prior literature discusses the role of village-level authorities in dispute resolution, my research reveals a new dimension: I find that elected members of local governments help constituents access formal legal institutions, which is essential to strengthening the rule of law, preventing conflict, and supporting economic development. Rather than substituting for a weak formal legal system, politicians play a complementary role, channeling cases towards the courts.

Second, this paper brings together the literature on constituency service and council and legislature size. Increasing the number of politicians may have mixed effects on public services (Mignozzetti, Cepaluni, and Freire 2024), finances (Freire et al. 2023) and overall development (De Santo and Le Maux 2023). This paper shows that larger councils can increase the overall capacity of the body by having a greater number of individual politicians engaged in constituency service. Studying this additional dimension—whether the number of politicians affects behaviors linked to constituency service—can form the basis of a promising research agenda, evaluating the effects of larger councils on responsiveness, trust and accountability.

Several governments in developing countries began a process of decentralizing development planning and management in the 1970s, to increase responsiveness and improve local development (Bardhan 2002). A key aspect of the decentralization process has been the formation smaller political units that elect a number of local representatives, creating local bodies for urban and rural areas. Such local bodies are not unique to India, and span countries across the world like Indonesia, Brazil, Uganda, China, South Africa, Pakistan and Bolivia (Bardhan and Mookherjee 2006). By demonstrating how members of these local bodies facilitate access to justice, I contribute to the larger comparative literature on local politics and decentralization.

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Appendix: The Political Roots of Legal Access: Evidence from Village Councils in India

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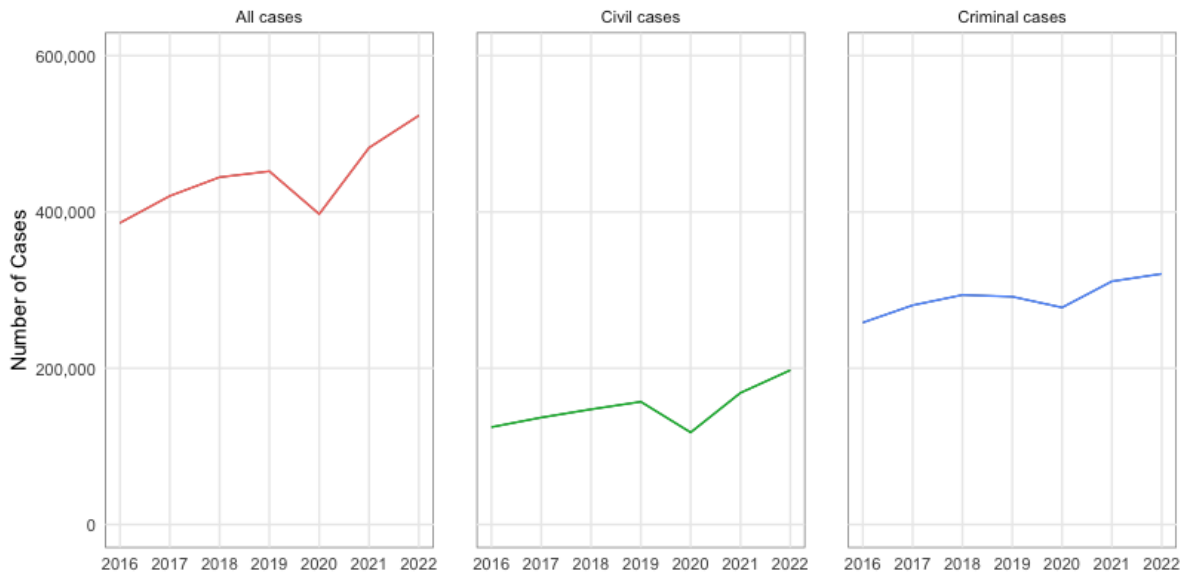
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A Data Description

A.1 Trends over Time

In this section, I show some descriptive figures. Figure A1 plots the trend of the main outcome (case filings) over the years for each case type: all, criminal and civil cases.

Figure A1: Cases trend over time

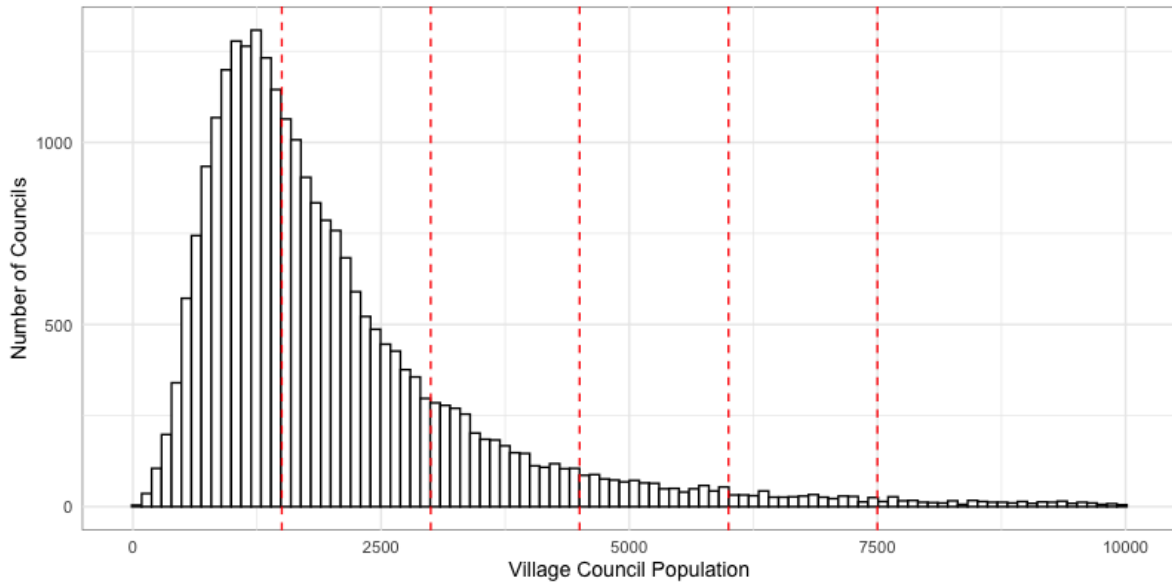


Note: The above plot shows the trend of the total number of cases in each year by category. The dip in 2020 is on account of the COVID-19 pandemic.

A.2 Distribution of Council Populations

Figure A2 shows a histogram of council populations. Here we observe that the majority of the council data is around the 1500 cutoff, and the share of councils at each cutoff decreases at each subsequent cutoff.

Figure A2: Council Population Distribution



Note: Dotted red lines indicate population-based cutoffs that add two additional council members. Data representing 25,602 councils that could be mapped to their populations using administrative datasets. Figures excludes 1.2% of councils with populations greater than 10,000.

A.3 Descriptive Statistics

Table [A1](#) shows the minimum and maximum populations for councils within each band, along with the count of villages within each band, and also displays the mean number of cases within each population band.

Table A1: Descriptive Statistics

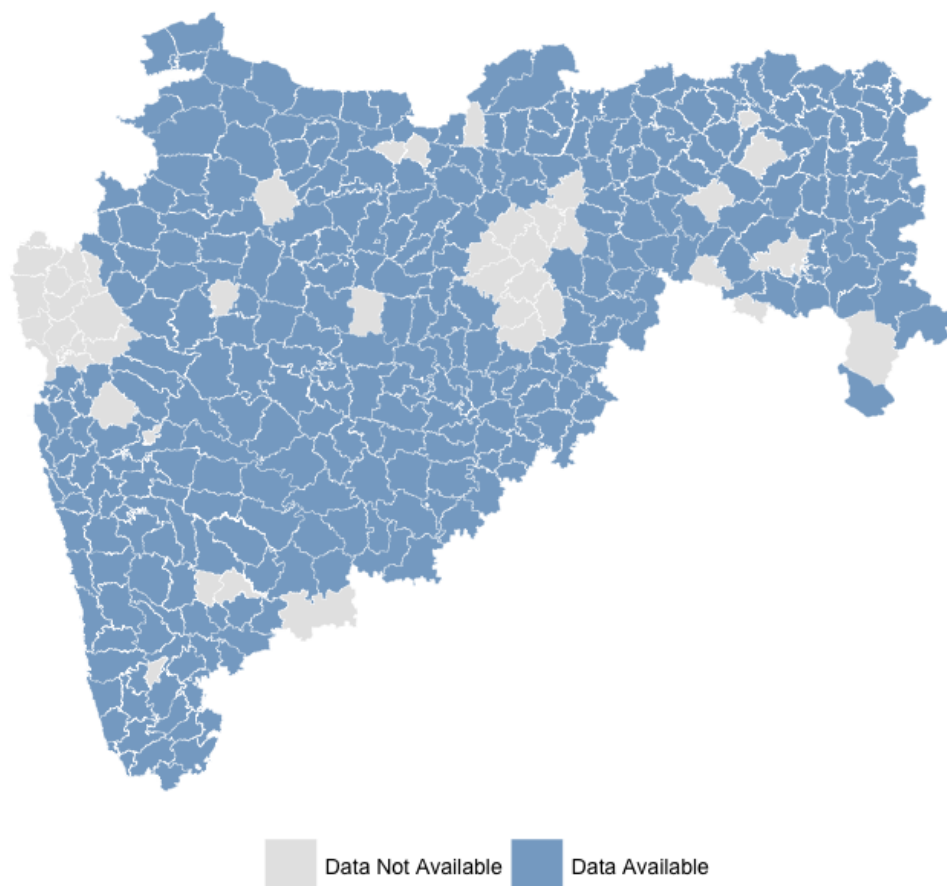
Population	Min Pop	Max Pop	Count	Members	All Cases	Civil Cases	Criminal Cases
<=1500	38	1500	11524	7	2.47	1.71	0.75
1501-3000	1501	3000	9455	9	3.41	2.13	1.26
3001-4500	3001	4499	2650	11	7.32	4.61	2.66
4501-6000	4501	6000	932	13	10.44	7.38	3.02
6001-7500	6002	7497	424	15	18.04	13.69	4.02
>=7501	7512	56491	617	17	28.78	21.73	6.93

Note: This table describes the councils in each block based on population: <1500, 1501-3000, 3001-4500, 4501-6000, 6001-7500 and >7501. Min Pop and Max Pop indicates the minimum and maximum population within the council's jurisdiction for each block. For example, for councils having a population of greater than 7500, the minimum population of such a council is 7512 while the maximum population is 56,491. Column 4 and 5 of the table indicates the number of such councils, and the council size assigned by the rule respectively. Finally, columns 6, 7, 8 denote the average the number of cases filed from councils within each category.

A.4 Spatial Distribution

To provide an overview of the data dispersion, Figure A3 plots the data availability at the sub-district level that has been analysed in the paper. In this map, I plot the sub-districts, indicating the sub-districts where the case-level data could be collected. The figure shows that the councils within the sub-districts analyzed in the main analysis are well distributed across the state. Note that the outcome data was not available for the entire districts of Hingoli, Washim, Thane and Palghar, in addition to some sub-districts. 6 sub-districts were excluded due to non-availability of data, and 11 sub-districts were excluded since the courts were created between 2016 and 2022.

Figure A3: Maharashtra Sub-District Maps: Availability of Case Data



Note: Sub-districts shaded in blue are the those for which case data from courts is available. We see from this figure that these are well-distributed across the state.

A.5 Variable Sources

The primary data used in the paper comes from a number of Indian public agencies. Further information is given in Table [A2](#).

Table A2: Data Sources

Name	Source Description	Data Provided	URL / Source
eCourts	Maharashtra District Courts	Village-level case data	https://court.mah.nic.in/courtweb/index_eng.php
LGD	Local Government Directory	Council-Village mapping	https://lgdirectory.gov.in/
shrug	Census of India 2011	Population data	https://www.devdatalab.org/shrug
Elections	Maharashtra State Election Commission	Elections data	https://mahasec.maharashtra.gov.in/ , Fieldwork by Priyadarshi Amar
REDS 2006	Rural Economic and Demographic Survey 2006	Survey data	Data provided by Andrew Foster

A.6 Outcomes

- Number of all cases 2016-2022: Number of all cases filed in lower courts in the district courts at the level of Civil Judge Junior Division, Civil Judge Senior Division or Judicial Magistrate First/Second Class for each village.
- Number of criminal cases 2016-2022: Number of criminal cases (as decided by coding rule given below) filed in lower courts in the district courts at the level of Civil Judge Junior Division, Civil Judge Senior Division or Judicial Magistrate First/Second Class for each village, as determined by case classification rule in Table A3
- Number of civil cases 2016-2022: Number of civil cases (as decided by coding rule given below) filed in lower courts in the district courts at the level of Civil Judge Junior Division, Civil Judge Senior Division or Judicial Magistrate First/Second Class for each village, as determined by case classification rule in Table A3
- Number of violence against women cases 2016-2022: Number of violence against women cases (as determined by case classification rule in Jassal (2024)) filed in lower courts in the

district courts at the level of Civil Judge Junior Division, Civil Judge Senior Division or Judicial Magistrate First/Second Class for each village.

Table A3: Rules to classify cases as civil or criminal

Case Type	Classification	Detailed Reason
R.C.S.	Civil	Regular civil suit
Civil M.A.	Civil	
M.A.C.P.	Civil	Motor accident claims
Reg Dkst	Civil	Civil court judgement
Arbitration R.D	Civil	Arbitration only for civil
Marriage Petn.	Civil	
L.A.R.	Civil	Land acquisition reference
R.C.A.	Civil	Regular civil appeal
Spl.C.S.	Civil	Special civil suit
PWDVA Appln.	Civil	Domestic violence
M.C.A.	Civil	Misc civil appeal
Spl .Dkst	Civil	Civil court judgement
MACP. Dkst.	Civil	Motor accident claims
M.J.Cases	Civil	Misc judicial cases
MACP. M.A.	Civil	Motor accident petition
Succession	Civil	Succession post deceased
Darkhast	Civil	
L.R.DKST.	Civil	
Sum.Civ.Suit	Civil	
Civil Suit	Civil	
Civil Revn.	Civil	
Civil Appeal PPE	Civil	
S.C.C.	Criminal	Summary criminal case
R.C.C.	Criminal	Regular criminal case
Cri.M.A.	Criminal	
Cri.Bail Appln.	Criminal	Bail application
Other Misc.Cri.Appln	Criminal	
Sessions Case	Criminal	Sessions court
Cri.Rev.App.	Criminal	Criminal revision application
Cri.Appeal	Criminal	Criminal appeal
Cri.Case	Criminal	
Spl Case MSEB	Criminal	MSEB theft of electricity
Cri.Municipal Appeal	Criminal	
Juvenile Cri.MA	Criminal	

A.7 Subordinate Courts

The data spans the universe of cases in the District Courts of Maharashtra.

On the Civil side, the Maharashtra Civil Courts Act¹⁶ lays down the rules to be followed. The State Government has the power to create districts, and the presiding judge in the district is called the “District Judge”. The state government can also appoint joint or additional district judges. Further, in each district, a number of “subordinate civil courts” can be created by the state government which are subordinate to the District court. The judges practicing in these subordinate courts are called “Civil Judges”. The location of such courts and local limits of the ordinary jurisdiction are to be determined by notifications in the Official Gazette. The District Court also has appellate jurisdiction from decrees and orders of the subordinate courts.

On the Criminal side, the Code of Criminal Procedure, Maharashtra, lays down the rules to be followed¹⁷. The State Government establishes a Court of Session for every session division (this is basically a district) which is presided over by a judge. Further, the state government establishes courts of Judicial Magistrates (JMs First and Second Class) across places and a particular local area has jurisdiction to try any cases or class of cases. The senior-most judge in this court is the ‘Chief Judicial Magistrate’ (CJM). The CJM is subordinate to the Sessions judge, and other JMs are subordinate to the CJM.

The data only looks at subordinate courts that are located at the sub-district (*taluka*) level - these are at the lowest level and include courts of the Civil Judge Junior Division, Civil Judge Senior Division and Judicial Magistrate First/Second Class. This helps us get around two important issues:

- (1) Maharashtra has established “District Courts” at the District Capital, and “Additional District Courts” at other locations in order to geographically spread out the higher court. The local limits of these courts are not always publicized on the website.
- (2) While aggregating civil and criminal cases, we can now be confident that they are of a similar nature
 - Civil Judge Junior Division: can hear cases that do not exceed a pecuniary value of

¹⁶Link to Maharashtra Civil Courts Act: <https://bit.ly/mh-civil-rules>

¹⁷Link to Code of Criminal Procedure, Maharashtra: <https://bit.ly/mh-crim>

500,000 INR (~ \$6000)

- Civil Judge Senior Division: can hear cases that do not exceed a pecuniary value of 1,00,000 INR (~ \$10,000)
- Judicial Magistrate First/Second Class: can try cases that involve imprisonment of less than three years or fines not exceeding ten thousand rupees

B Treatment Details

B.1 Multiple Treatments at 3000

I searched for government programs that would contaminate any of the five cutoffs. While no such programs appear to use the 1500, 4500, 6000 and 7500 cutoffs, a cutoff of 3000 is being used to determine eligibility for a number of schemes:

- (1) A nationwide development program launched in 2014 called *Saansad Adarsh Gram Yojana*¹⁸, wherein each member of parliament can choose a group of villages in their constituency to implement developmental programs.
- (2) The Government of Maharashtra using the 3000 threshold to determine additional staffing for the village panchayats¹⁹
- (3) The prize money for the “Tanta Mukti Scheme” (dispute-free villages) increases by 33% at the 3000 population cutoff²⁰

I thus only focus on the uncontaminated cutoffs for the main analysis.

B.2 Treatment Dose

The main results in the paper looks at treatment effects using the first cutoff. It is important to note that a number of factors change at each cutoff, most important being other policies in place and design and size of the wards. These differences are summarized in Table A4. There are other

¹⁸Source: <https://bit.ly/sansad-agy>, Last Accessed: 10 July, 2025, Page archived locally.

¹⁹Source: <https://bit.ly/gp-staffing>, Last Accessed: 10 July, 2025, Page archived locally.

²⁰Source: <https://bit.ly/tantamuktischeme>, Last Accessed: 10 July, 2025, Page archived locally.

policies in place at 500 and 3000 cutoffs. The 4500 and 7500 cutoffs add a new ward for the additional council members. The 6000 cutoff has more than double the ward size as compared to the first cutoff, as seen in column 4 in Table A4.

Table A4: Heterogeneity in Ward Size and Design

Threshold	Council Growth	Ward Design	Ward Size (appx)
500	—	Roads construction policy	NA
1500	7 → 9 (28% ↑)	3,2,2 → 3,3,3	500 (No change)
3000	9 → 11 (22% ↑)	3,3,3 → 3,3,3,2	1000 → 750
4500	11 → 13 (18% ↑)	3,3,3,2 → 3,3,3,2,2	1125 → 900
6000	13 → 15 (15% ↑)	3,3,3,2,2 → 3,3,3,3,3	1200 (No change)
7500	15 → 17 (13% ↑)	3,3,3,3,3 → 3,3,3,3,3,2	1500 → 1250

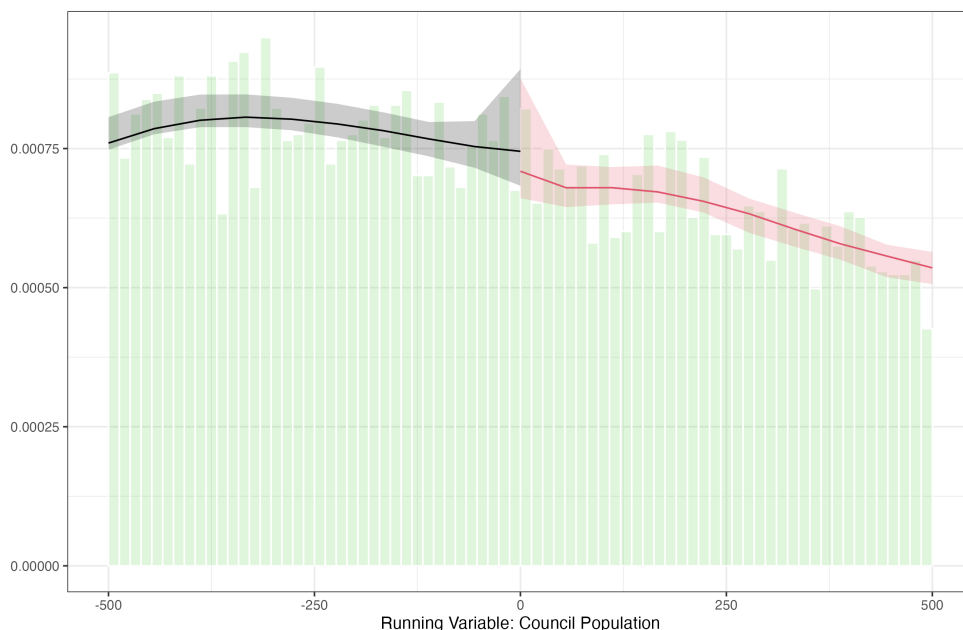
Notes: Threshold indicates population-based cutoffs. Details provide the policy in place, along with the increase in council size in brackets. Ward design indicates the number of candidates and the total number of wards. For example, 3,2,2 indicates 3 wards with the first, second and third ward electing 3, 2 and 2 members respectively. Ward size shows how the number of persons changes in each ward at the threshold; at the 1500 and 6000 threshold there is no change in ward size since the number of wards remain the same.

B.3 Regression Discontinuity Assumptions: No Sorting

The RDD is based on the assumption is that there is no manipulation (indicative of sorting) of the forcing variable (in this case, council population) near the cutoff. This would be the case if influential persons in a village were able to falsify the population numbers to allocate either fewer or greater number of members than prescribed by the design. Given that the enumerators are typically government school teachers or local officials, it might be possible for local elites to influence the enumeration process, and report lower or higher numbers if they perceive that certain benefits would be received. Another way this might happen is if people migrate to villages with either larger or smaller council sizes such that they are governed by their desired number of council members. While both these processes seem unlikely, I plot the density of the running variable and conduct a

formal test from Cattaneo, Jansson, and Ma (2020) in Figure A4. The local polynomial of degree 2 are constructed using a triangular kernel function, with jackknife standard errors.

Figure A4: Density Discontinuity Test



Notes: The plot in the figure shows the density of council population based on the 2011 census around the 1500 cutoff. Figures and tests provide evidence for the absence of discontinuities at the thresholds.

B.4 Regression Discontinuity Assumptions: Continuity

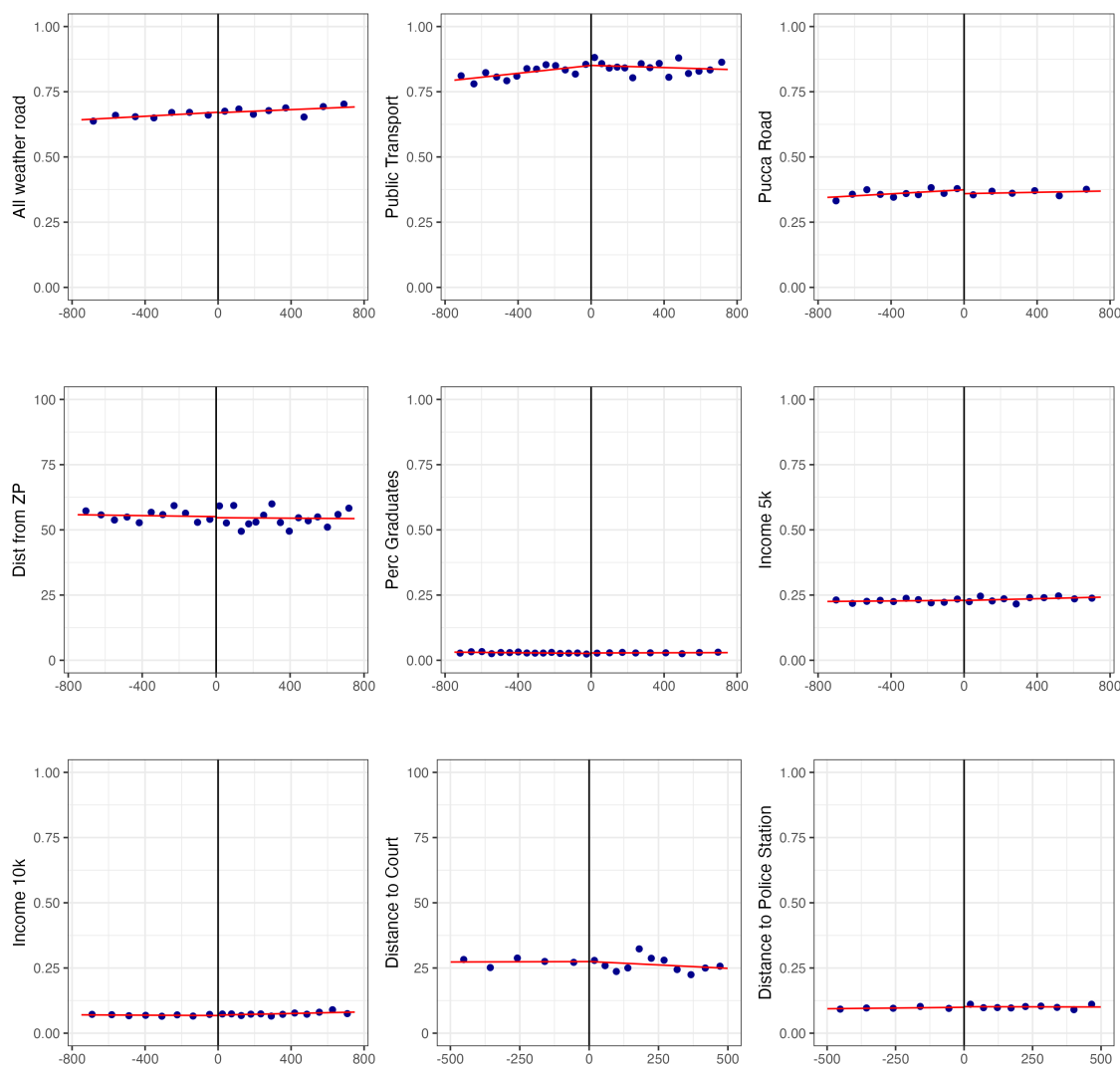
The second key identification assumption of the regression discontinuity design is that pre-treatment covariates are balanced around the population threshold. The lack of balance might imply confounding—the estimates of the treatment may be biased.

I test this assumption by collecting data from a number of data sources, particularly focusing on factors that are most likely to lead to confounding in this set-up: connectivity (availability of roads, transport and distance to headquarters), area (in square meters) governed by the council, number of graduates and high income earners. While the main paper discusses the differences between the treatment and control groups near the threshold, I visualize the data using plots here in Figure A5

Visually, it appears that a larger council is further away from the *Zilla Parishad* (ZP) that indicates the district capital, and has a greater number of graduates. On the other hand, smaller councils have

a smaller sharer of high-income earners. Finally, in larger councils, while there appears to be a greater probability of having access to public transport, there is also a lower probability of having an all weather or internal road. There does not appear to be any conclusive evidence on the presence of large discontinuities in pre-treatment covariates.

Figure A5: Covariate Balance



Notes: Each blue dot in the figure represents an outcome (indicated on the y-axis) for each council, based on quantile-spaced binning. Red lines denote local linear regressions. Data for the first five outcomes comes from the 2011 census, data on incomes comes from the Socio-Economic and Caste Census 2012, and data on distances (to courts and police station) computed by author.

B.5 Test for Compliance

I show compliance with the rule at each of the cutoffs. I use the data on council elections and focus on the winners. I produce the regression discontinuity estimates on the number of politicians at each cutoff in Table ???. While we would expect that these estimates are precisely 2, they will not be perfect due to the absence of data for seats where no elections were conducted: that is, the council member was elected unopposed.

Table A5: Council elections data shows high compliance

	Pooled	1500	3000	4500	6000	7500
LATE	1.32*** (0.26)	1.23*** (0.24)	1.56*** (0.53)	1.79*** (0.56)	0.81 (1.66)	2.87** (1.22)
Obs. (L)	4868	4106	1683	497	190	75
Obs. (R)	2612	2088	643	205	92	227
Effective Obs. (L)	1337	733	212	126	40	75
Effective Obs. (R)	1152	693	200	100	32	73
Bandwidth	257	172	163	266	183	1078
Bandwidth (Bias)	402	259	279	421	282	1381

Note: *p<0.1; **p<0.05; ***p<0.01. Standard errors in paranthesis clustered at the council level. Each observation is number of elected council members measured from a village in the 2021 elections. Obs. (L) and Obs. (R) indicate the number (and effective number) of observations to the left and right of the cutoff respectively. ‘Pooled’ cutoff excludes the 3000 cutoff. Bandwidth is in number of persons. The values in brackets indicate the robust standard errors.

I use an alternate approach to show that the treatment leads to an increase in council size, leveraging an audit design from the 320 villages surveyed in A. R. Heinze, Brulé, and Chauchard (2025). From this dataset, I look at 220 villages that are affected by the first cutoff. I find that assignment to treatment increases the number of council members by almost two members.

C Alternate Explanations

C.1 Electoral Cycles

To explore whether the timing of elections matters, I break down the results by the number of years since the council election year - whether it is the election year and the number of years after the election.

Table A6: Compliance from Survey of Councils

	1500 Cutoff
LATE	1.96** (0.84)
Obs. (L)	106
Obs. (R)	66
Effective Obs. (L)	35
Effective Obs. (R)	31
Bandwidth	279
Bandwidth (Bias)	406

Note: * $p < 0.1$; ** $p < 0.05$; *** $p < 0.01$. Standard errors in paranthesis clustered at the council level. Each observation is number of elected council members measured from a village in the survey discussed. Obs. (L) and Obs. (R) indicate the number (and effective number) of observations to the left and right of the cutoff respectively. Bandwidth is in number of persons. The values in brackets indicate the robust standard errors.

Table A7 shows a weak evidence of an election cycle for all cases: the effects are statistically significant both during the election year and in two years after the election. However, there are differences for criminal and civil cases. Table A8 shows the same effect for criminal cases only—we see that the effects are strongest and statistically significant in the year of the election. Finally, A9 shows the results of the analysis for civil cases. We observe that the effects of council size on access to the justice system appear to be evenly spread. These findings provide mixed evidence about how an electoral cycle plays out, and that the mechanisms could be different for criminal and civil cases.

C.2 Electoral Context and Mobilization

Perhaps one reason why members of larger councils are more effective in facilitating access to justice could relate to the electoral context. An electoral explanation for this phenomenon can be that elections to larger councils are more competitive and increase turnout from diverse groups, and the incentive to be re-elected causes members to be more engaged in their constituencies and address disputes. Further, it may be that citizens in larger councils are more politically active given that there is now a larger group of candidates per seat, and this political activity leads to greater contact with constituents, leading to a higher turnout during elections. Finally, members of larger councils can be perceived to be more legitimate by citizens, and hence citizens are more likely to

Table A7: Results by election year for all cases

	Election Year	1 year post	2 years post	3 years post	4 years post
LATE	0.77*** (0.26)	0.49 (0.30)	0.45* (0.25)	0.38 (0.28)	0.40 (0.29)
Obs. (L)	19368	9937	7369	9580	11027
Obs. (R)	14899	7670	5717	7502	8626
Effective Obs. (L)	5949	2519	2291	2789	3382
Effective Obs. (R)	5328	2333	2046	2545	3021
Bandwidth	218	189	227	216	224
Bandwidth (Bias)	381	306	376	351	340

Note: *p<0.1; **p<0.05; ***p<0.01. Standard errors in paranthesis clustered at the council-year level. The treatment is councils with two additional members. Each observation is cases measured from a village in a particular year based on the election cycle. Obs. (L) and Obs. (R) indicate the number (and effective number) of observations to the left and right of the cutoff respectively. Bandwidth is in number of persons. The values in brackets indicate the robust standard errors.

Table A8: Results by election year for criminal cases

	Election Year	1 year post	2 years post	3 years post	4 years post
LATE	0.56*** (0.18)	0.18 (0.19)	0.25 (0.18)	0.17 (0.21)	0.09 (0.21)
Obs. (L)	19368	9937	7369	9580	11027
Obs. (R)	14899	7670	5717	7502	8626
Effective Obs. (L)	4594	2519	1704	2389	3195
Effective Obs. (R)	4222	2333	1515	2154	2872
Bandwidth	172	189	172	186	213
Bandwidth (Bias)	337	302	296	306	327

Note: *p<0.1; **p<0.05; ***p<0.01. Standard errors in paranthesis clustered at the council-year level. The treatment is councils with two additional members. Each observation is cases measured from a village in a particular year based on the election cycle. Obs. (L) and Obs. (R) indicate the number (and effective number) of observations to the left and right of the cutoff respectively. Bandwidth is in number of persons. The values in brackets indicate the robust standard errors.

Table A9: Results by election year for civil cases

	Election Year	1 year post	2 years post	3 years post	4 years post
LATE	0.31** (0.13)	0.25 (0.15)	0.33** (0.15)	0.26* (0.14)	0.30** (0.14)
Obs. (L)	19368	9937	7369	9580	11027
Obs. (R)	14899	7670	5717	7502	8626
Effective Obs. (L)	6745	3427	1885	2441	3012
Effective Obs. (R)	5972	3072	1669	2227	2716
Bandwidth	246	253	188	191	200
Bandwidth (Bias)	380	369	304	327	333

Note: * $p < 0.1$; ** $p < 0.05$; *** $p < 0.01$. Standard errors in paranthesis clustered at the council-year level. The treatment is councils with two additional members. Each observation is cases measured from a village in a particular year based on the election cycle. Obs. (L) and Obs. (R) indicate the number (and effective number) of observations to the left and right of the cutoff respectively. Bandwidth is in number of persons. The values in brackets indicate the robust standard errors.

approach them. I can test this by analyzing the effect of larger council sizes on the share of NOTA votes – NOTA is short for ‘None of the Above’ and such votes are cast when the voter does not support any of the candidates in council elections. Thus a greater number of NOTA votes could signal lower legitimacy and support.

I test this by analyzing the effect of larger council sizes on (1) the share of close elections (with a margin of victory less than 10%), (2) the number of contesting candidates per seat, (3) the total number of contesting candidates (4) number of citizens turning out to vote and (5) the share of votes that are cast as a NOTA vote.

Table A10 indicates that elections to larger council sizes are not more competitive, and do not have greater number of candidates contesting per seat, or changes legitimacy of candidates, captured by the share of NOTA votes cast by voters. On the other hand, we observe a statistically significant 18% increase in turnout, and on average, we see about 3 more candidates contesting the elections.

C.3 Council size does not affect police-related functions

One alternate explanation for the increased criminal cases is that additional council members are able to strengthen other functions pertaining to the police. For example, adding council capacity

Table A10: Larger councils and electoral context

	Close Elections	Candidates per Seat	Total Candidates	Turnout	NOTA
LATE	0.001 (0.02)	-0.02 (0.03)	3.34*** (0.71)	379.64*** (83.52)	0.001 (0.001)
Obs. (L)	38599	38884	6105	6942	6942
Obs. (R)	30343	30564	3923	4404	4404
Effective Obs. (L)	10174	13669	1787	1518	1503
Effective Obs. (R)	11184	14242	1589	1412	1385
Bandwidth	191	248	212	163	161
Bandwidth (Bias)	288	378	314	261	258

Note: *p<0.1; **p<0.05; ***p<0.01. Standard errors in paranthesis clustered at the council-year level. The treatment is councils with two additional members. Each observation measured from a council during an election. Obs. (L) and Obs. (R) indicate the number (and effective number) of observations to the left and right of the cutoff respectively. Bandwidth is in number of persons. The values in brackets indicate the robust standard errors.

might increase their effectiveness in recruiting a village police officer (known as a police patil). I use the same data of 220 villages for which a survey was conducted in Maharashtra (A. Heinze 2025; A. R. Heinze, Brulé, and Chauchard 2025), and I find that assignment to treatment has no statistically significant effect on whether a police patil is recruited.

Table A11: Does village have a police patil?

	0=Yes / 1 = No
LATE	-0.05 (0.35)
Obs. (L)	105
Obs. (R)	62
Effective Obs. (L)	24
Effective Obs. (R)	26
Bandwidth	232
Bandwidth (Bias)	363

Note: *p<0.1; **p<0.05; ***p<0.01. Standard errors in paranthesis clustered at the council level. Each observation indicates whether a police patil has been recruited from the village in the survey discussed. Obs. (L) and Obs. (R) indicate the number (and effective number) of observations to the left and right of the cutoff respectively. Bandwidth is in number of persons. The values in brackets indicate the robust standard errors.

C.4 Council size does not affect trust in institutions

An alternate explanation that explains the increase in citizens accessing courts is that increasing council size increases trust in institutions. I show that this is not the case, using descriptive analysis that uses data from the *Indian Human Development Survey-II* in Table A12.

Each respondent is a head of the household. ‘Confidence in Police’ and ‘Confidence in Courts’ are outcomes that take the value 1 if the respondent selects “a great deal of confidence”, as opposed to “only some” or “hardly any confidence”. ‘Panchayat member close to household’ takes value 1 if a panchayat member or official is within or close to the household. The results indicate that while respondents in larger councils report that they have access to a council member close to their household, a larger number of members is not associated with greater confidence in the police or courts.

Table A12: Effect of Council Size on Trust in Institutions

	Panchayat member close to household (1)	Confidence in Police (2)	Confidence in Courts (3)
Number of Council Members	0.007** (0.003)	−0.0001 (0.002)	−0.0004 (0.001)
State FE	Yes	Yes	Yes
Religion FE	Yes	Yes	Yes
Caste Category FE	Yes	Yes	Yes
Observations	15,407	15,407	15,407
R ²	0.180	0.056	0.051

Note: *p<0.1; **p<0.05; ***p<0.01. standard errors in paranthesis clustered at the village level. The independent variable is the reported number of council members.

Table A13: Politicians do not affect court processes

	Decisions	Time to Decision
LATE	0.12 (0.10)	−6.58 (26.61)
Obs. (L)	88568	8390
Obs. (R)	48624	5810
Effective Obs. (L)	30456	3349
Effective Obs. (R)	25576	3120
Bandwidth	309	329
Bandwidth (Bias)	524	497

Note: * $p < 0.1$; ** $p < 0.05$; *** $p < 0.01$. Robust standard errors in paranthesis clustered at the council level. The treatment is councils with two additional members. Each observation is number of decisions and the mean time to decision for cases measured from a village in a particular year. Obs. (L) and Obs. (R) indicate the number (and effective number) of observations to the left and right of the cutoff respectively. Bandwidth is in number of persons. Note that the fewer number of observations for the time to decision outcome is due to the fact that it can only be measured if a decision is issued for a case filed from the council in a particular year.

C.5 Council size does not affect case resolution

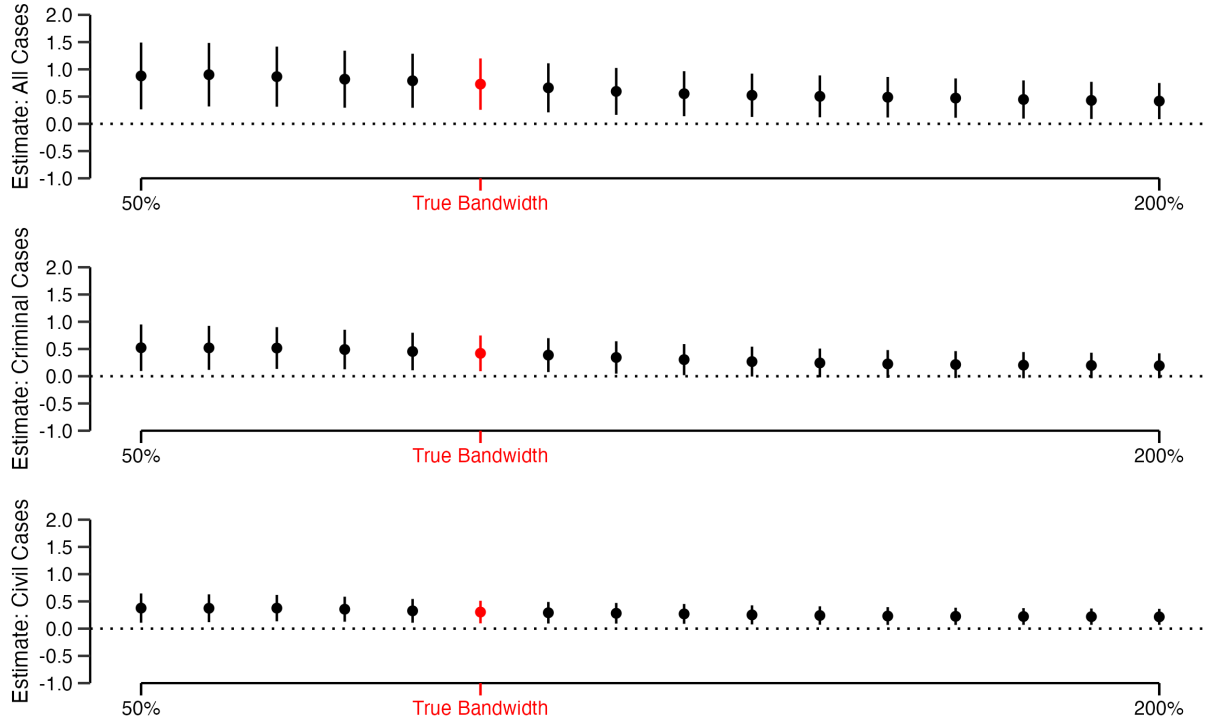
D Sensitivity Analysis

D.1 Sensitivity to Bandwidth Choice

In this section, I present sensitivity tests for bandwidth selection. I follow the suggestions of Bueno and Tunon (2015)²¹ and vary bandwidth from 50% to 200% of the Calonico, Cattaneo, and Titiunik (2014) estimate in Figure A6. We see that our results are not sensitive to the choice of bandwidth.

²¹Graphical Presentation of Regression Discontinuity Results, The Society for Political Methodology Blog. Available at: <https://bit.ly/rd-link>

Figure A6: Results not sensitive choice of bandwidth

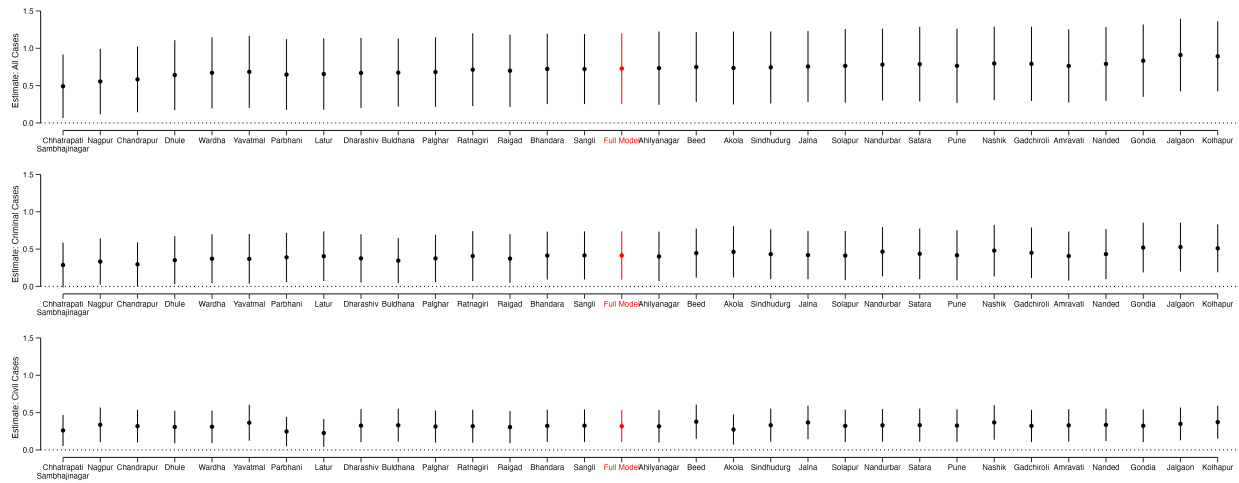


Note: The above plot shows the sensitivity to bandwidth choice for the three main outcomes.

D.2 Sensitivity to District Characteristics

Due to the large size of the state, Maharashtra has a lot of geographic variation. For instance, some districts could be more geographically compact that allows individuals to access courts easily as compared to districts that are more geographically spread out. A concern of this is that the results could be driven by the inclusion of an outlier district that skews the average. I run the analysis by dropping one district at a time to investigate if the results are sensitive to the presence of such a district. The results in Figure A7 show that the estimates remain robust.

Figure A7: Sensitivity to District Characteristics

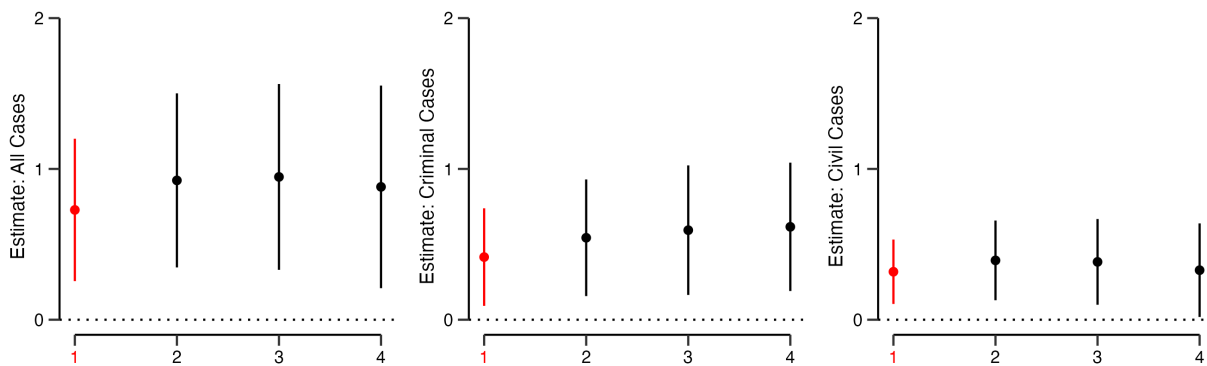


Note: The above plots show the sensitivity to district characteristics by each case category separately – that is, for all cases, criminal cases and civil cases.

D.3 Sensitivity to Functional Form

In Figure A8, I show that the results remain robust to changing the functional form: using linear ($p=1$), quadratic ($p=2$), cubic ($p=3$) and quartic ($p=4$).

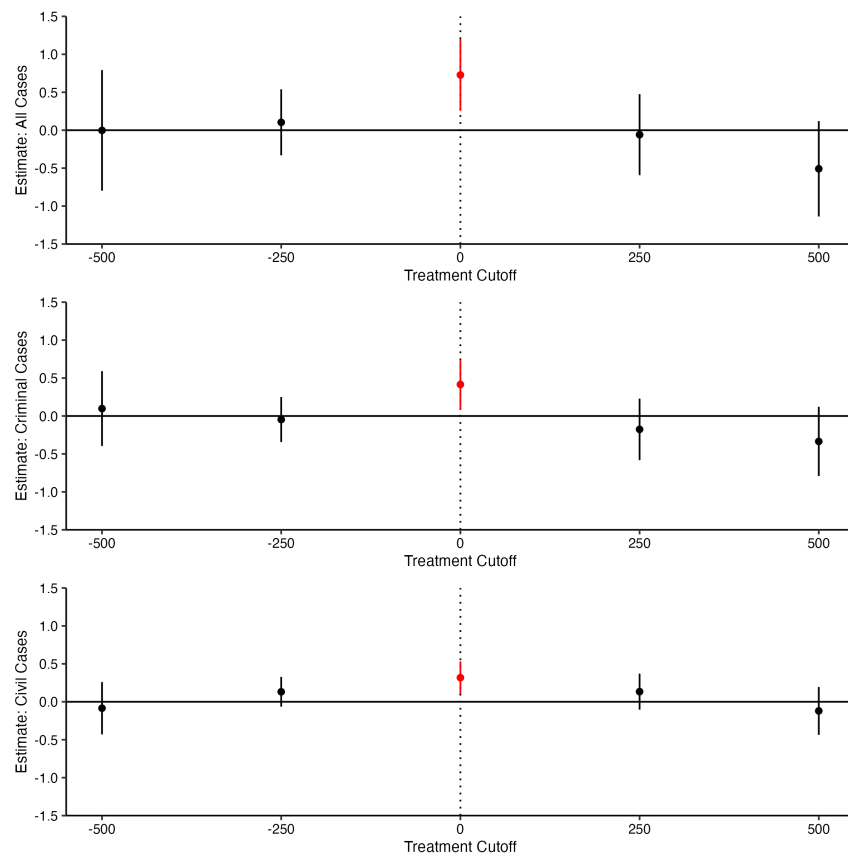
Figure A8: Sensitivity to Functional Form



D.4 Results at placebo cut-offs

In Figure A9, I perform placebo tests to show the relationship between the running variable and the case filing at cutoffs other than the true cutoff. To do this, I re-estimate the regression discontinuity estimates at placebo cutoffs. I generate placebo cutoffs incrementally by adding or subtracting 250 on either side of the true population cutoff that determines the treatment. There are no significant LATE estimates for these placebo cutoffs, showing that there are no significant discontinuities in the outcome for placebo values of the running variable.

Figure A9: Placebo Tests at Different Cutoffs



Note: Results in red indicate the true cutoff, and those in black are computed at placebo cutoffs. Plots indicate bias-corrected point estimate and robust standard errors.

D.5 Robustness using Regression Discontinuity Aggregation

In order to conduct the analysis at the council level, I exclude cases that are filed from litigants in multiple villages. This reduces the sample that I can analyse to 35%. In this section, I show

robustness to using all the cases filed, through an analysis at the sub-district level using the Regression Discontinuity Aggregation method (Borusyak and Kolerman-Shemer 2025).

In this analysis, I aggregate all the cases filed at the sub-district denoted by i . To estimate the effects of larger sized councils, I first calculate the fraction of treated units in the sub-district (X_i), that is, the ratio of councils that are assigned a larger council to the total number of councils in the sub-district. I instrument this by using the fraction of treated councils that are close to the 1500 cutoff, using the bandwidths estimated (Z_i). Further, to interpret the results as local causal effects at the upper level of aggregation (the sub-district level), I add the RDA controls as suggested in Borusyak and Kolerman-Shemer (2025). In my analysis, these variables are the share of councils within the cutoff relative to the total number of councils in a sub-district (c_1), the average of the running variable within the cutoff (c_2), and the average of the running variables for the treated units within the cutoff (c_3).

I use an instrumental variables strategy leveraging RD aggregation using the following specification:

$$\text{First Stage: } X_i = \gamma_0 + \rho_1 Z_i + \gamma_1 \text{Population}_i + \gamma_2 c_{1i} + \gamma_3 c_{2i} + \gamma_4 c_{3i} + \eta_i \quad (4)$$

$$\text{Second Stage: } \text{Cases}_i = \beta_0 + \rho \hat{X}_i + \beta_1 \text{Population}_i + \beta_2 c_{1i} + \beta_3 c_{2i} + \beta_4 c_{3i} + \epsilon_i \quad (5)$$

From Table A16, we see that larger councils lead to greater case filings for all three case types. Since the treatment is a fraction and to make this estimate comparable with the treatment analysed in the paper, I multiple the estimated effects by 0.26 to understand the effect of a 26% increase in treated units.

Table A15 shows that a 26% increase in the number of treated councils corresponds to a 45.4% increase in the number of cases filed at the sub-district level. Similarly, a 26% increase in the number of treated councils corresponds to a 29.4% increase in the number of criminal cases filed and a 56.9% increase in the number of civil cases filed. While the interpretation of the treatment at the sub-district is slightly different from that analysed in the main paper, it is nevertheless confirms that the effects are not driven due to exclusion of cases filed from more than one village.

Table A14: Regression Discontinuity Results: Sub-District Level

	Total Cases	Criminal Cases	Civil Cases
Z	2,512.239** (1,102.368)	1,404.411* (766.597)	1,065.818*** (407.061)
Population	0.005*** (0.001)	0.003*** (0.001)	0.002*** (0.0004)
c_1	1,167.116* (648.392)	999.056** (450.897)	171.014 (239.425)
c_2	-1.589 (1.179)	-0.895 (0.820)	-0.694 (0.435)
c_3	-1.054 (1.597)	-0.674 (1.111)	-0.376 (0.590)
District FE	Yes	Yes	Yes
Mean of DV	1437.691	941.511	486.252
First-stage F-stat	135.29	135.29	135.29
Observations	2,128	2,128	2,128
R ²	0.211	0.206	0.290

Note: *p<0.1; **p<0.05; ***p<0.01. Each observation is the number of cases measured from a taluka in each year. The total elected members is the total number of council members serving within the sub-district.

Table A15: Interpreting Magnitude of IV Estimates (Effect of a 26% Increase in X)

Category	Coefficient	Effect of +0.26 in X	% of Mean DV
Total Cases	2,512.24	+653.12 cases	45.4%
Criminal Cases	1,404.41	+365.04 cases	29.4%
Civil Cases	1,065.82	+276.9 cases	56.9%

Note: The mean dependent variables for the sample are 1,437.7, 941.5, and 486.3 respectively. X is measured as a fraction (0–1).

D.6 Robustness subsetting to low-missingness sub-districts

Another concern with these data is that there are lots of missing cases. This can be assessed by taking advantage of the fact that each case number is assigned in a sequence of numbers in the form of serialized data (Wu et al. 2026). For each sub-district, this allows me to assess how many cases could be missing. On average for each sub-district, it appears that 26% of data is missing. Figure A10 illustrates this in two sub-districts, one evaluated as having low amount of missing data and one with relatively higher missing data.

Figure A10: Using sequence of case numbers to quantify missingness



I replicate the results using the regression discontinuity aggregation design, only focusing on the subset of sub-districts where the data is of very high quality. That is, I subset to sub-districts where any possible missingness accounts for fewer than 10% of observed cases. I find that the results are robust in both interpretation and magnitude on subsetting to the sub-districts wherein the data is high quality and reliable.

Table A16: Regression Discontinuity Results: Sub-District Level (Low Missingness Sub-Districts Only)

	Total Cases	Criminal Cases	Civil Cases
Z	5,134.500*** (1,648.808)	3,750.617*** (1,181.421)	1,350.144*** (487.863)
Population	−0.00003 (0.001)	−0.001 (0.001)	0.0005 (0.0004)
c ₁	−1,727.924 (1,347.032)	−1,145.011 (965.190)	−564.352 (398.571)
c ₂	−0.902 (2.643)	−0.416 (1.894)	−0.474 (0.782)
c ₃	−3.511 (2.407)	−2.417 (1.725)	−1.086 (0.712)
District FE	Yes	Yes	Yes
Mean of DV	1193.285	848.995	338.758
First-stage F-stat	103.47	103.47	103.47
Observations	784	784	784
R ²	0.062	−0.007	0.287

Note: *p<0.1; **p<0.05; ***p<0.01. Each observation is the number of cases measured from a taluka in each year, restricting to talukas with less than 10

D.7 Natural experiment: Newly formed councils

In this section, I analyse an alternate design focusing on newly formed councils. For the main analysis, I focus on councils created before 2011. In this section, I analyse 952 new councils that were formed between 2016 and 2022. These new councils are created by taking the local areas that form the older council, and splitting them into two or more councils. For example, in June 2025, a council comprising three villages: Panchala (Bk), Panchala (Kh) and Guguldosh, in Ramtek, Nagpur, was split into two groups: the first group named Panchala (Bk) comprised of Panchala (Bk) and Panchala (Kh), while the second group named Gugoldoh comprised of the Gugaldoh village²². While some of these newly created councils get assigned a smaller council size (based on the same population thresholds), others get assigned a larger council size with two additional members. For example, before the split, the 3 villages together had a population of 3252, which assigned the council 11 members. Once it split, the first group had a population of 1922 which assigned it a 9-member council, while the second group with a population of 1330 was assigned a 7-member council.

I run the main analysis for these villages only in Table A17. We observe partially consistent results here—having two additional council members increases the filing rate for criminal cases from the newly formed councils with larger councils. However, the results for all and civil cases are not statistically significant.

E Additional details

E.1 Rural Economic and Demographic Survey Questions Used

I accessed data from the Rural Economic and Demographic Survey conducted in 2005-06 by obtaining a minimal risk research IRB approval from the University of Wisconsin–Madison. I submitted the same to Dr. Andrew Foster, who shared the restricted data for the 2005-06 years.

Below, I reproduce the exact wording of the questions from which the outcomes are constructed

²²Details obtained from Maharashtra Rural Development Ministry Website, <http://bit.ly/4lpGN8u>, Last Accessed on 10 July, 2025. Page archived for reference. Notifications for several other examples can be accessed on the ‘Notifications’ page here: <http://bit.ly/4IREWsZ>

Table A17: Newly Formed Councils

	All Cases	Criminal Cases	Civil Cases
LATE	0.44 (0.47)	0.65*** (0.22)	-0.01 (0.26)
Observations	3773	3773	3773
Observations (bw)	1014	921	1355
Bandwidth	194	170	245
Mean (control)	1.85	0.98	0.8
Effect (%)	24	66	-1

Note: *p<0.1; **p<0.05; ***p<0.01. Local linear estimates of average treatment effects (LATE) at cutoff estimated with triangular kernel weights and optimal MSE bandwidth, with 95% robust SEs clustered at the council level. Observations (bw) denotes the number of observations within the optimal MSE bandwidth and Mean (control) is the control mean within the optimal MSE bandwidth. Each observation is a village-year.

for the difference-in-differences analysis. Each response takes an ordinal outcome taking values between 1 and 4, with 1 being the highest rating for the question [High=1; Medium=2; Low=3; Not aware=4].

1. Honesty: Evaluation of Elected Representatives [Honesty and fairness: p83q3, p83q4]
2. Qualifications: Evaluation of Elected Representatives [Technical qualifications of the candidate: p83q9, p83q10]
3. Solve social problems: Evaluation of Elected Representatives [Ability to solve social problems, such as disputes over land, marriage etc: p83q18, p83q19]
4. Solve local problems: Evaluation of Elected Representatives [Ability to solve local problems such as roads, education, water etc: p83q15, p83q16]

E.2 Interview Questionnaire

In Summer 2025, I collected interviews from 19 council members in Maharashtra. I started with collecting the contact details of currently serving council members in Maharashtra, from which I drew a random sample of 100 contact numbers. The team at *Across India* contacted these council members and asked the following questions:

1. How many years have you been a council member?
2. Do villagers come to you to solve disputes?
 - a. What kinds of disputes do you not attempt to resolve?
 - b. What types of cases do villagers typically approach you to resolve?
 - c. What types of cases do villagers typically not approach you to resolve?
3. There is a property dispute in a family in your village. They approach you for help. How do you help them?
4. There is a murder in your village. You are approached by the family of the deceased for help. How do you help them?
5. Why do you help villagers with their problems?
6. Do you know any lawyers or anyone from the police force? How?

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